THE 2027 PHILIP C. JESSUP INTERNATIONAL LAW MOOT COURT COMPETITION

OFFICIAL RULES

THE OFFICIAL RULES OF

THE 2027 PHILIP C. JESSUP INTERNATIONAL

LAW MOOT COURT COMPETITION

Table of Contents

DEFINITIONS 1

RULE 1: ORGANIZATION OF THE COMPETITION 3

1.1. Administration 3

1.2. Structure of the Competition 3

1.3. Establishment of Qualifying Rounds 4

1.4. Friendly Rounds 4

1.5. Organization of Rounds 5

1.6. Administrators 5

1.7. Rules Supplements 5

1.8. Power to Promulgate Additional Measures 6

1.9. Interpretation of Rules 6

RULE 2: PARTICIPATION AND ELIGIBILITY 6

2.1. Institutional/Team Eligibility 6

2.2. Team Composition 7

2.3. Team Member Eligibility 7

2.4. Executive Director's Written Permission Required in Certain Cases 8

2.5. Executive Director's Discretion 8

2.6. Team Selection Process 8

2.7. Nationality Requirements 8

2.8. Outside Assistance to Teams 9

2.9. Assistance from Team Advisors 9

2.10. Assistance from Other Teams 9

2.11. Jessup Courses 10

2.12. Memorial Drafts 10

2.13. Practice Moots 10

2.14. Confidentiality of the Bench Memorandum 11

2.15. Use of Opposing Team's Memorials and Arguments 11

2.16. Corrections and Clarifications 11

2.17. Anonymity of Teams 12

RULE 3: TEAM REGISTRATION 12

3.1. Team Registration 12

3.2. Waiver of Registration Fee 12

3.3. Team Member Registration 13

3.4. Team Advisor Registration 13
3.5. Team Number as Identification 14
3.6. Changes to Registration Information 14
RULE 4: JUDGES AND ELIGIBILITY TO JUDGE 14
4.1. Determinations of Eligibility 14
4.2. Students 14
4.3. Team Advisors 14
4.4. Anonymity of Teams 15
4.5. Judge Conflicts of Interest 15
4.6. Prior Viewing of Teams 16
4.7. Bench Memorandum 17
4.8. Commentary by Judges 17
RULE 5: MEMORIALS 17
5.1. Submission of Memorials 17
5.2. Assistance with Translation of Memorials into English 17
5.3. Memorial Formatting 18
5.4. Advanced Features of Microsoft Word 18
5.5. Memorial Content 18
5.6. Cover Page 19
5.7. Table of Contents 19
5.8. Index of Authorities 19
5.9. Statement of Facts 20
5.10. Summary of the Pleadings 20
5.11. Legal Argument Limited to Pleadings 20
5.12. Length 20
5.13. Citation Requirement 21
5.14. Anonymity in Memorials 21
5.15. Teams with Technological Limitations 21
5.16. Grading of Memorials 22
5.17. Abbreviations (including Acronyms and Initialisms) 22
RULE 6: IN-PERSON MOOTS 22
6.1. General Procedures 22
6.2. Extension of Time at Judges' Discretion 23

6.3. Three Judge Panels 23
6.4. Order of the Pleadings 23
6.5. Rebuttal and Surrebuttal 24
6.6. Scope of Pleadings 24
6.7. Failure to Appear for an In-Person Moot 24
6.8. Of Counsel 25
6.9. Courtroom Communications 25
6.10. Oral Communication in the Courtroom 25
6.11. Written Communication 26
6.12. Spectators 26
6.13. Scouting 26
6.14. Interpreters and the Use of Interpreters 27
6.15. Audio and Video Recording and Transmission 28
6.16. Anonymity of Teams in Courtrooms 28
6.17. Computers, Mobile Phones, and other Electronic Devices in Courtrooms 28
6.18. Timekeeping Devices in the Courtroom 28
6.19. The President 29
RULE 7: ONLINE MOOTS 29
7.1. General Procedures 29
7.2. Pre-Moot Procedure 29
7.3. Three Judge Panels 29
7.4. The President 30
7.5. Timekeeping in an Online Moot 31
7.6. Order of the Pleadings 31
7.7. Rebuttal and Surrebuttal 31
7.8. Scope of Pleadings 31
7.9. Courtroom Communications 32
7.10. Oral Communication between Counsel and Judges 32
7.11. Participants and Spectators in an Online Moot 32
7.12. Spectators 32
7.13. Location of Participants 32
7.14. Team Communication during an Online Moot 33
7.15. Anonymity of Teams 33

7.16. Configuration of Camera and Microphone 33
7.17. Non-Appearance of a Team and Technical Problems 33
7.18. Abandoned and Ex Parte Online Moots – Preliminary Rounds 35
7.19. Abandoned and Ex Parte Online Moots – Elimination Rounds 36
7.20. Scouting 37
7.21. Interpreters and the Use of Interpreters 38
7.22. Recording 38
RULE 8: QUALIFYING AND FRIENDLY ROUNDS 38
8.1. Structure 38
8.2. Preliminary Rounds 38
8.3. Pairings 39
8.4. Elimination Rounds 39
8.5. Pleading Option 40
RULE 9: INTERNATIONAL ROUNDS 40
9.1. Eligibility 40
9.2. Structure 40
9.3. Scheduling Conflicts 40
9.4. Preliminary Rounds 41
9.5. Pairings for the Preliminary Rounds 41
9.6. Advanced Rounds 41
9.7. Determining the Teams Advancing to the Advanced Rounds 41
9.8. Pairings for the Advanced Rounds 41
9.9. Elimination Rounds 42
9.10. International Octofinals, Quarterfinals, Semifinals, and World Championship 42
9.11. Pairings for Elimination Rounds 42
9.12. National Pair-Off Qualification 43
9.13. Previous Meeting Qualification 44
9.14. Pleading Option in the Elimination Rounds 44
RULE 10: COMPETITION SCORING 44
10.1. Basis for Scores 44
10.2. Preliminary and Advanced Rounds 44
10.3. Calculation of Scoring Points 45
10.4. Average Memorial Score 45

10.5. Raw Scores 45
10.6. Round Points 45
10.7. Two-Judge Panels 46
10.8. Determining the Winner of a Preliminary or Advanced Round Match 46
10.9. Preliminary and Advanced Round Rankings 46
10.10. Tie-Breaking Procedure 47
10.11. Scoring Procedures for Elimination Rounds – Qualifying and Friendly Rounds 48
10.12. Scoring in Elimination Rounds – International Rounds 48
10.13. World Championship Round – International Rounds 48
10.14. Ranking of Oralists 49
10.15. Ranking of Memorials 49
10.16. Reporting of Results 49
RULE 11: PENALTIES 50
11.1. Memorial Penalties 50
11.2. Plagiarism 51
11.3. Moot Penalties 51
11.4. Deduction of Penalties by Judges Prohibited 52
11.5. Activity Subject to Moot Penalties – Preliminary Rounds 52
11.6. Activity Subject to Moot Penalties - Elimination Rounds 52
11.7. Notice and Appeals 53
11.8. Discretionary Penalties 53
11.9. De Minimis Rule 53
11.10. Complaints About the Conduct or Result of a Match 54
11.11. Complaints Made During a Qualifying or Friendly Round 54
11.12. Complaints Made After a Qualifying or Friendly Round 55
RULE 12: AWARDS 56
12.1. The World Championship 56
12.2. The M. Cherif Bassiouni Award 56
12.3. The Alona E. Evans Award 56
12.4. The Ved P. Nanda Awards 56
12.5. The Richard Baxter Awards 57
12.6. The Spirit of the Jessup Award 57
12.7. Other Awards 57

RULE 13: ACCOMMODATION REQUESTS 57
13.1. Accommodation Requests 57
ANNEX I: LIST OF ACRONYMS 59

DEFINITIONS

The following terms as used in these Rules have the corresponding meanings.

"Administrator" means, with respect to a Qualifying or Friendly Round, the person appointed to administer that Round by the Executive Director, and in relation to the International Rounds, the Executive Director or any person to whom the Executive Director has delegated authority with respect to a particular task.

"Advanced Rounds" means the set of matches at the International Rounds described in Rule 9.6, where each Team competes against two other Teams, once as Applicant and once as Respondent.

"Applicant" means the side of the Team arguing on behalf of the Applicant state at any given point in the Competition.

"Bench Memorandum" means the memorandum of law and authorities concerning the Competition Problem prepared by the Executive Office for the exclusive use of Competition judges, as described in Rules 2.14 and 4.7.

"Competition" means the 2027 Philip C. Jessup International Law Moot Court Competition.

"Competition Problem" means the official Problem of the Competition as supplemented, corrected, or clarified.

"Competition Year" means the period starting on the date of the release of the Competition Problem and ending at the conclusion of the International Rounds.

"Corrections and Clarifications" means the official corrections and clarifications to the Problem described in Rule 2.16.

"Elimination Rounds" means, all the applicable Championship Round, Semifinal Round, Quarterfinal Round, Octofinal Round, Round of 32, and Run-Off Round conducted at Qualifying, Friendly, or International Rounds.

"Executive Director" means the Executive Director of the International Law Students Association, or any person to whom the Executive Director has delegated authority with respect to a particular task.

"Executive Office" means the Executive Office of the International Law Students Association.

"Friendly Round" means a Round, which occurs prior to the International Rounds, among Teams from multiple nations or a geographic region(s), approved by the Executive Director in accordance with Rule 1.4.

"International Rounds" means the Preliminary, Advanced, and Elimination Rounds involving all eligible Teams.

"In-Person Moot" means a Moot at which the judges and the Teams are all present in the same room.

"Jurisdiction" means a country, nation, region or jurisdiction which is recognized by the Executive Director for the purposes of the Competition.

"Match" means a single competitive pairing involving one Applicant and one Respondent and includes a Moot and comparison of the Memorial scores of the Teams.

"Memorial" means the written pleadings of each Team, written and submitted pursuant to these Rules.

"Moot" means a single oral presentation between two Teams, one representing Applicant and one representing Respondent, whether an In-Person Moot or an Online Moot as described in Rules 6 and 7, respectively.

"National Round" means any Round administered with the approval of the Executive Director through which a Jurisdiction determines the Team(s) that will advance to the International Rounds.

"Official Schedule" means the official timetable of the Competition, setting forth all relevant events and deadlines associated with the Competition.

"Online Moot" means a Moot conducted entirely over the internet with the judges and each Team being remote from one another.

"Penalty" means the consequence of a Rules violation, pursuant to Rule 11.

"Preliminary Rounds" means a set of Matches which form the first stage of each Qualifying, Friendly, and the International Rounds where each Team competes against four other Teams, twice as Applicant and twice as Respondent.

"Qualifying Round" means any Round administered with the approval of the Executive Director which is determinative of which teams from any Jurisdiction or region will advance to the International Rounds. Qualifying Rounds will be designated as a "National Round" or "Regional Round" as appropriate.

"Regional Round" means any Round administered with the approval of the Executive Director in a geographic region through which a Jurisdiction determines the Team(s) that will advance to the International Rounds.

"Representative" means a Team selected to represent its Jurisdiction at the International Rounds, whether by Qualifying Rounds or by other means.

"Respondent" means the side of the Team arguing on behalf of the Respondent state at any given point in the Competition.

"Round(s)" means a Friendly Round, a Qualifying Round (whether a National Round or a Regional Round), or the International Rounds as the context dictates.

"Rules" means these Official Rules of the Competition.

"Rules Supplement" means a set of rules promulgated by an Administrator, with the approval of the Executive Director, to supplement or modify the Rules for purposes of a Qualifying or Friendly Round.

"Team" means a team of eligible students recognized by the Executive Office that registers to compete in the Competition, pursuant to Rule 2.

"Team Advisor" means an individual, who at any time during the Competition Year has responsibility for organizing, advising, or training a Team, whether or not a member of the faculty of the institution represented by the Team.

"Team Homepage" means the personalized homepage available to each Team on the ILSA Website http://www.ilsa.org/.

"Team Number" means the official 3-digit number assigned by the Executive Office to each fully registered and paid Team in accordance with Rule 3.5.

"Team Member" means any eligible student who is registered as a competitor on behalf of a Team.

RULE 1: ORGANIZATION OF THE COMPETITION

1.1. Administration

The Competition is presented annually by the International Law Students Association (ILSA) and is administered by the Executive Director. All materials developed by ILSA for the Competition, including, without limitation, the Rules and the Competition Problem, are the sole property of ILSA. These materials may not be reproduced for any purpose other than participation in or administration of the Competition without the express and prior written consent of the Executive Director. All Memorials become the sole property of ILSA and may not be republished without its express consent.

1.2. Structure of the Competition

(a) The Competition consists of two levels: (1) Qualifying Rounds, and (2) the International Rounds.

(b) The number of Representatives from each Jurisdiction shall be determined as follows:

(i) a number at least equal to the number of Teams that submit Memorials in that jurisdiction divided by eight, rounded to the nearest whole number; and

(ii) an additional Team for each Jurisdiction where at least one Team advanced to the Elimination Rounds of the 2026 International Rounds.

(c) In a jurisdiction where only one Team registers, that Team is the National Representative to the International Rounds.

(d) The Executive Director may permit such additional Teams to participate in the International Rounds as the Executive Director determines to be in the best interests of the Competition.

1.3. Establishment of Qualifying Rounds

(a) If more than one Team registers from a particular Jurisdiction, the Executive Director will inform all such Teams that a Qualifying Round will be necessary to determine which Team(s) will advance to the International Rounds.

(b) The Executive Director may, in their sole discretion, permit a Qualifying Round of a Jurisdiction with three or fewer Teams to be held in conjunction with another Qualifying Round or a Friendly Round. A Qualifying Round may only be held outside the Jurisdiction with the consent of each Team that has registered in that Jurisdiction and the Administrators of the Jurisdictions and/or the Friendly Round concerned. Where the Executive Director gives permission under this rule they shall, in consultation with the relevant Administrators, promulgate a Rules Supplement to determine how the Rounds will be conducted.

1.4. Friendly Rounds

(a) The Executive Director may, in their sole discretion, authorize the holding of one or more Friendly Rounds. A team is automatically eligible to apply to participate in one Friendly Round if that Team is the only Team registered in its Jurisdiction.

(b) The Executive Director may, in their sole discretion, authorize a Friendly Round in conjunction with one or more Qualifying Rounds. In that instance, a Team will become eligible to compete in the Friendly Round if, after completing its Qualifying Round, either (i) it did not qualify to advance to the International Rounds, or (ii) it competed in three (3) or fewer Moots in its Qualifying Rounds.

(c) Eligible Teams should communicate their desire to compete in Friendly Rounds to the Executive Director. The Executive Director will endeavor to assign them to a Friendly Round.

1.5. Organization of Rounds

(a) The International Rounds shall be conducted in an In-Person format. The Executive Director may change the International Rounds to an Online format if doing so is in the best interests of the Competition.

(b) Qualifying and Friendly Rounds shall be conducted In-Person. Such Rounds shall be held in compliance with local public health laws, regulations and guidance. In exceptional circumstances, Administrators may request permission from the Executive Director to hold a Qualifying or Friendly Round Online or in a combination of In-Person and Online.

1.6. Administrators

(a) The Executive Director will inform Teams of the name and contact information of the relevant Administrator as soon as practicable. The Administrator will designate the date and location for the Qualifying Round and will conduct the Qualifying or Friendly Round in a manner consistent with these Rules and in consultation with the Executive Director. Administrators will choose a date within the period allocated by the Official Schedule for Qualifying and Friendly Rounds.

(b) An Administrator may not serve as a Team Advisor or in any other way assist a Team registered in their Qualifying or Friendly Round. An Administrator may not act as a judge in their Qualifying or Friendly Round, unless it is in the best interests of the Competition and the Teams to be judged by the Administrator provide their consent.

1.7. Rules Supplements

(a) Administrators are encouraged to formulate a Rules Supplement for their Qualifying or Friendly Round.

(b) An Administrator shall submit a Rules Supplement to the Executive Office for approval as soon as practicable but no later than four weeks prior to the commencement of the Qualifying or Friendly Round. Rules Supplements must be submitted to and approved by the Executive Director before they may be adopted and enforced by an Administrator.

(c) Upon approval of a Rules Supplement, it shall be published on the Jessup website, and the Administrator shall immediately notify every affected Team that a Rules Supplement has been approved and adopted.

1.8. Power to Promulgate Additional Measures

(a) The Executive Director may promulgate any other measures for the orderly conduct of the Competition or to correct deficiencies in the Competition.

(b) An Administrator may, in consultation with and upon prior approval of the Executive Director, promulgate additional rules, modifications, or other measures for the orderly conduct of the Qualifying or Friendly Round. Any proposed additional rules, modifications or other measures shall be submitted to the Executive Office as soon as practicable for approval in accordance with Rule 1.7 and, once approved, codified by the Administrator in the Rules Supplement and posted to the Jessup website.

1.9. Interpretation of Rules

The Executive Director shall serve as final arbiter of the implementation and interpretation of these Rules and of all Rules Supplements and additional measures.

RULE 2: PARTICIPATION AND ELIGIBILITY

2.1. Institutional/Team Eligibility

(a) All educational institutions offering a degree, or similar graduate or postgraduate qualification or training, in law or in a field related to international law, or in international relations, are eligible to participate in the Competition. All determinations of eligibility are in the discretion of the Executive Director.

(b) Each institution may enter one Team, regardless of the number of colleges, departments, faculties, or schools within that institution, and the Team may include students from one or more of its colleges, departments, faculties, or schools (for example, by allowing a student in an international relations program to compete on the Team with students from its law faculty). However, a duly authorized officer of an institution may petition the Executive Director, in writing to allow the participation of more than one Team from that institution. Additional Teams may be allowed if it is established that each such Team fulfills the participation and registration requirements of these Rules, and one of the following conditions is met: (i) an intramural competition or other Team selection process would be difficult or impossible to hold due to the institution's regulations, calendar, geographic location(s), or other circumstances beyond the control of the institution or participating Teams; or (ii) the Teams represent different colleges, faculties, branches, departments, or campuses of the same institution and will be participating independently of each other.

(c) An institution located in one jurisdiction (the "home jurisdiction") that has a permanent physical

campus in another jurisdiction (the "foreign jurisdiction") and wishes to register a Team in the foreign jurisdiction, must petition the Executive Director in writing. The Executive Director may consult with the Administrator in the home and foreign jurisdictions and request additional information from the petitioning school. The Executive Director may then grant or withhold permission to enter such Team in the best interests of the Competition and may grant permission subject to conditions (for example, a requirement that all Team members be enrolled full time at the foreign campus).

2.2. Team Composition

(a) A Team may be composed of two to five Team Members. Team Members must satisfy the eligibility requirements set forth in Rules 2.3 through 2.7 and must be registered in accordance with Rule 3.2. Team Members shall be the only individuals permitted to contribute to the substantive work product of the Team over the course of the Competition Year, as set out in Rules 2.8 through 2.10. Substitutions, replacements or additions of Team Members may only be made in accordance with Rule 3.6. Permission from the Executive Director is not required to remove one or more Team Members (without substitution).

(b) A Team may have up to five Team Advisors. Teams must register all Team Advisors in accordance with Rule 3.4. Team Advisors are not and cannot be Team Members. Team Advisors are restricted by and are subject to the outside assistance rules contained in Rules 2.8 through 2.10.

(c) Participating institutions and individuals are not permitted to use the current year's Competition Problem for any purpose other than participating in the Jessup Competition. The current year's Competition Problem may not be used for any other purpose, including, but not limited to, conducting an internal moot court competition and/or Jessup Team try-outs.

2.3. Team Member Eligibility

A person may be a Team Member if they:

(a) are pursuing a degree, or similar graduate or postgraduate qualification or training in law, or in a field related to international law, or in international relations, provided that they have received, or will receive while participating, adequate instruction in international law; and

(b) intend to compete on behalf of an eligible institution at which they are enrolled as a full-time or part- time student as of (i) the Team Member registration deadline, (ii) the Qualifying or Friendly Rounds, or (iii) the International Rounds; and

(c) have not, after having graduated from any type of law degree program, either (i) engaged in the

practice of law, (ii) enrolled in a program of study leading to an advanced post-graduate degree in a legal field (e.g. Ph.D., D.Phil., J.S.D.) or received such a degree, or (iii) engaged in any paid or unpaid activity (outside of degree studies) which would give the student an undue advantage in any aspect of the Competition over students who have not yet completed their first law degree, and the opinion of the Executive Director on these issues shall be final; and

(d) have never participated as judge, either of Memorials or in any Moot, at any level of the Competition or in a previous Jessup Competition.

2.4. Executive Director's Written Permission Required in Certain Cases

(a) In addition to satisfying Rule 2.3, a person must request and obtain the written permission of the Executive Director to be a Team Member if the person:

(i) is enrolled as a visiting or exchange student rather than as a degree candidate, or is otherwise enrolled at more than one institution;

(ii) is serving as an extern or apprentice in lieu of attending class; or

(iii) has already received a graduate degree or post-graduate degree in a legal field (e.g., LL.M., J.D., Canadian LL.B., M.Phil. (International Law), Juris Master).

(b) Most LL.B. degrees are considered undergraduate degrees. Students who are currently pursuing an undergraduate degree in a legal field are not required to obtain special permission. In addition, students who are currently pursuing, but have not yet completed, their first graduate degree in a legal field are not required to obtain special permission.

2.5. Executive Director's Discretion

Notwithstanding the provisions of Rules 2.3 and 2.4, the Executive Director shall have the discretion to grant or deny eligibility in certain exceptional circumstances, but shall do so only in accord with the spirit of these Rules and in the best interests of the Competition.

2.6. Team Selection Process

Team Members may be chosen by any method approved by the responsible authority within the institution.

2.7. Nationality Requirements

Administrators may not set nationality requirements with regard to the composition of Teams.

2.8. Outside Assistance to Teams

(a) All work product for the Jessup Competition must be the exclusive work of the Team Members. Team Members must research, write, edit, and develop the legal and factual arguments for Memorials and oral arguments without the assistance of persons who are not Team Members. Any Team that receives assistance for, or any other contribution to, its legal or factual arguments in contravention of this Rule may be penalized or disqualified from the Competition.

(b) Team Advisors may only provide assistance as permitted by Rules 2.9, 2.12, and 2.13.

(c) Resources and training sessions provided to Teams by ILSA, including but not limited to the Basic Materials and the Jessup Compendium, are not prohibited by this Rule.

2.9. Assistance from Team Advisors

(a) Team Advisors registered in accordance with Rule 2.2 may provide advice to a Team, provided such advice is restricted to:

(i) general instruction on the basic principles of international law;

(ii) general advice on research sources and methods;

(iii) general advice on Memorial writing techniques;

(iv) general advice on oral advocacy techniques;

(v) general advice on the organization and structure of arguments in the Team's written and oral pleadings;

(vi) general commentary on the quality of the Team's legal and factual arguments;

(vii) advice on the interpretation and enforcement of these Rules; and

(viii) advice as to pleading options or similar strategic decisions.

(b) Teams may also receive the advice and guidance that is allowed in Rules 2.11, 2.12 and 2.13.

2.10. Assistance from Other Teams

Team Members and Team Advisors from any Team, including Teams that have been eliminated from the Competition, may not provide assistance in any way to any other Team. Prohibited assistance includes, but is not limited to, the following: giving the Team's notes or Memorials to a Team still in the Competition; posting the Team's Memorials online so that a person who is not a registered Team Member or registered Team Advisor may access them; engaging in practice Moots against a participating Team; and providing video or audio recordings of previous Moots, whether practice Moots

or Competition Moots, to a Team still in the Competition. The Executive Director may allow for otherwise prohibited assistance in the best interests of the Competition.

2.11. Jessup Courses

Unless prior approval is granted in writing by the Executive Director, Team Members may not participate or be enrolled in a class or course which uses the current year's Competition Problem as a subject matter of instruction, as a teaching tool, or as a means for selecting Team Members. No approval is necessary if student enrolment in the course is limited to Team Members and the course is conducted by a Team Advisor. In any case, even when approval is unnecessary or has been granted by the Executive Director, Team Members must comply with the other provisions of Rule 2.8 regarding outside assistance. Students enrolled in a Jessup course who are not selected to be Team Members may not share or discuss their work with Team Members.

2.12. Memorial Drafts

Before Memorials are submitted, Teams may not distribute their Memorials to anyone who is not a Team Member or Team Advisor. Team Advisors may provide feedback on Memorials at any time provided they abide by the provisions of Rule 2.9.

2.13. Practice Moots

(a) Teams may organize practice Moots involving the Competition Problem to prepare for the Competition. In practice Moots, the persons presenting arguments for the Applicant and Respondent must be from the same Team. No Team Member from any other Team may observe a practice Moot, and any Team or Team Member who does view another Team's practice Moot, or a Team which permits them to do so, may be disqualified by the Executive Director.

(b) Team Advisors may, at any time, serve as judges in practice Moots for the Team they advise, provided they abide by the provisions of Rule 2.9.

(c) An individual who is not a Team Member or Team Advisor may serve as a judge in a Team's practice Moots if they:

(i) do so only after the submission of Memorials;

(ii) are not formally affiliated with any other Team in the Competition;

(iii) have not obtained access to the Bench Memorandum;

(iv) confine their feedback to general commentary on the advocacy style and technique of

the oralists, and to commentary respecting the general rules of international law; and

(v) refrain from offering substantive answers or suggestions respecting specific arguments made in the Moot that go beyond the general rules of international law.

(d) No person who has judged a practice Moot should disclose any information about that Moot to any other Team in the Competition.

2.14. Confidentiality of the Bench Memorandum

(a) The Bench Memorandum is strictly confidential. The Executive Director will disqualify any Team that makes use of the Bench Memorandum. Teams that obtain a copy of the Bench Memorandum should immediately inform the Executive Director and either destroy it or return it to the Executive Director without examining the contents, as the Executive Director may request.

(b) The Bench Memorandum may be used only for Qualifying, Friendly, or the International Rounds of the Competition established pursuant to these Rules.

(c) Individuals who have obtained access to the Bench Memorandum may not judge practice Moots.

2.15. Use of Opposing Team's Memorials and Arguments

(a) Until eliminated from the Competition, a Team may not view or otherwise become privy to any Memorial other than its own and the Memorials of scheduled opponents provided by an Administrator under these Rules.

(b) A Team may incorporate arguments and other information from:

(i) the Memorials referred to in paragraph (a).

(ii) any Moot in which the Team has competed and any Moot which the Team has attended pursuant to Rule 6.13(e) or Rule 7.20(e).

2.16. Corrections and Clarifications

Teams may request corrections and clarifications to the Competition Problem by submitting a written request to the Executive Office through the online system provided for that purpose, at www.ilsa.org by the date in the Official Schedule. Based upon the requests received from all Teams, Corrections and Clarifications to the Competition Problem will be published by the date in the Official Schedule. Each Team must ensure that it receives and adequately notes the Corrections and Clarifications in preparation for the Competition.

2.17. Anonymity of Teams

(a) Except to the extent permitted in (b), Teams must not reveal the identity of their institution, Jurisdiction, or nationality of origin to judges at any time during a Round. The Administrator may impose a Penalty (up to and including disqualification) against any Team that intentionally or inadvertently violates this Rule, whether or not such disclosure occurs during a Moot. All instances of disclosure during a Round shall be reported to the Executive Director.

(b) Posting pictures of or comments relating to a Jessup Team or Team Member(s) on social media or a publicly available website is permitted, provided that:

(i) the Team Number is not disclosed;

(ii) identification of the Team, if included, is limited to the institution and Jurisdiction that the Team represents and Team Member names; and

(iii) the posts are not directed at or specifically shared with judges.

RULE 3: TEAM REGISTRATION

3.1. Team Registration

(a) Each Team must register with the Executive Office by completing a registration form online at https://www.ilsa.org/jessup-competitors/ and paying the appropriate registration fee by the deadline in the Official Schedule. Each Team must provide a valid email address at registration. Notice sent to the registered email address for the Team constitutes notice to all Team Members.

(b) All Team Members and Team Advisors are expected to regularly check their Team Homepage for updates and announcements. A Team may not validly complain that it was not given proper notice of a rule change or update, when that change or update was made available on the Team Homepage.

(c) As a condition of participating in a Qualifying or Friendly Round, the Administrator may, with the consent of the Executive Director, levy a reasonable fee to defray the costs of organizing that Round.

3.2. Waiver of Registration Fee

(a) Teams unable to pay in full the registration fee levied pursuant to Rule 3.1(a) may apply for a waiver or discount from the Executive Director, which the Executive Director may grant only in exceptional circumstances. Requests for waivers or discounts should be submitted via the online form located at https://www.ilsa.org/jessup-competitors/ and on the Team Homepage. National, Regional, or Friendly Round Administrators do not have authority to grant waivers or discounts of registration fees

levied pursuant to Rule 3.1(a).

(b) Any request for a waiver or discount of a fee levied pursuant to Rule 3.1(c) should be addressed to the Qualifying or Friendly Round Administrator in the first instance. Any appeal from a decision taken by the Qualifying or Friendly Round Administrator should be addressed to the Executive Director.

3.3. Team Member Registration

(a) Every student who contributes to the work product of the Team, at any point in the Competition Year, must be registered as a Team Member and counted toward the maximum of five Team Members. Conducting research for a Team's oral and/or written arguments, writing any part of a Team's Memorial, and presenting any of a Team's oral arguments are examples of activities that contribute to a Team's work product. Students designated by a school or by a Team as alternate or back-up team members may not be registered as Team Members and may not contribute to the Team's work product.

(b) Each Team Member may serve any Team Member role, such as researcher, writer, oralist for the Applicant, and oralist for the Respondent, and may serve multiple or all Team Member roles, at any time during the Competition Year. Team Members do not need to register or otherwise designate their particular role(s) on the Team.

(c) It is the responsibility of the Team to ensure that students are eligible under the provisions of Rule 2.3, or to submit a request for special permission as required under Rule 2.4 or Rule 2.5, prior to contributing to the Team's work product.

(d) Team Members with pending requests for special permission may contribute to the Team's work product while awaiting the Executive Director's decision regarding such requests. If the Executive Director denies a request, the requesting Team Member must immediately cease contributing to the Team's work product and the Team must discard all work produced by the ineligible Team Member.

(e) The name of each Team Member and the program in which they are enrolled must be registered with the Executive Office, via the online registration form located under the "Profile" link on the Team's Homepage, by the registration deadline in the Official Schedule.

3.4. Team Advisor Registration

The name of each Team Advisor for a Team must be registered with the Executive Office by the Team registration deadline in the Official Schedule. Team Advisors must be registered by completing the online registration form located under the "Profile" link on each Team's Homepage. An individual sitting only as a practice Moot judge pursuant to Rule 2.13, whether or not a member of the faculty of the

institution represented by the Team, need not register as a Team Advisor.

3.5. Team Number as Identification

Once a Team has completed registration, including paying in full the appropriate registration fee, the Team will be assigned an official Team Number.

3.6. Changes to Registration Information

Once Team Members and Team Advisors are registered, Teams may not make additions or substitutions of Team Members or Team Advisors without permission from the Executive Director. A Team must request such change by submitting a description of the change and a justification to jessup@ilsa.org. The Executive Director may permit substitution or addition of Team Members only in exceptional circumstances and will not permit such change after work product (written, oral, or research) has been created or generated by the Team Member being replaced or after the Team's Memorials have been submitted.

RULE 4: JUDGES AND ELIGIBILITY TO JUDGE

4.1. Determinations of Eligibility

The Executive Director, or the Administrator in consultation with the Executive Director, will determine the eligibility of persons to serve as judges in any part of the Competition, subject to the provisions of this Rule.

4.2. Students

Students may act as Competition judges only if they (a) hold a degree in law in any jurisdiction, or a degree in an international law-related field, and (b) are not directly affiliated with any Team participating in the Round at which they are judging.

4.3. Team Advisors

Unless expressly permitted by a Rules Supplement or otherwise approved by the Executive Director, Team Advisors, or others directly affiliated with a Team, may not act as judges of Memorials or in a Moot until the Team they advise has been eliminated from the Competition. Team Advisors or others directly affiliated with a Team who are permitted to act as judges pursuant to this Rule shall not, in any case, be provided with access to the Bench Memorandum and shall not disclose anything to the Team

they advise concerning the written or oral submissions of the Team(s) they judge, in violation of Rule 6.13(a) and 7.20(a).

4.4. Anonymity of Teams

Judges should not attempt to ascertain the school or country of origin of any Team before or during a Round. This includes searching for information about Team Members or Team Advisors on the internet or social media platforms.

4.5. Judge Conflicts of Interest

(a) For purposes of this Rule, the following definitions shall apply:

(i) an "Affiliation" means a personal or professional relationship between a judge and an institution, Team Advisor, or Team Member participating in the Round in which the judge is to serve.

(ii) a "Conflict of Interest" means an Affiliation that would, in the eyes of a reasonable observer, create an inference that the judge would be unable to be impartial as to the conduct or result of the Moot. Reference should be had to Rule 4.5(f), which lists certain Affiliations that do not *per se* constitute a Conflict of Interest.

(b) The Administrator should avoid placing a judge into a Moot in which they have a Conflict of Interest. In the event that the Administrator is unable to avoid a Conflict of Interest, the Administrator should take reasonable steps to mitigate the effects of the Conflict of Interest on the Moot. Such steps might include: obtaining a waiver of the Conflict of Interest from both Teams; informing the other members of the panel of the judge's Affiliation; adding to the panel a judge with a proportional Affiliation with the opposing Team; and assigning a neutral official to observe the Moot and the subsequent deliberations to determine whether the Conflict of Interest affected the outcome of the Moot.

(c) Any Conflict of Interest may be cured by the express oral or written waiver, either before or after the Moot, of both Teams. In this event, neither Team may later file a complaint on the basis of the Conflict of Interest. In addition:

(i) If a Team is aware of an Affiliation before the commencement of a Moot and fails to report it, as required under Rule 4.5(e), before the Moot begins, it shall waive any alleged Conflict of Interest.

(ii) If a Team becomes aware of an Affiliation during or after the completion of a Moot and

fails to report as required under Rule 4.5(e), it shall waive any Conflict of Interest.

(d) It is the duty of a judge to report any Affiliations at the time they register to judge or subsequently directly to the Administrator in advance of the Moot. The Administrator shall investigate any reported Affiliation (whether self-reported by a judge or otherwise) and shall determine whether such Affiliation constitutes a Conflict of Interest.

(e) If a Team believes that an Affiliation exists which may constitute a Conflict of Interest, it shall promptly inform the judge serving as President during the Moot, who shall take appropriate steps to inform the Administrator where appropriate and, if the Administrator determines that a Conflict of Interest exists, to eliminate or mitigate it. A Team's failure to timely inform the President of an Affiliation of which it is aware will constitute waiver under Rule 4.5(c).

(f) The difference between a mere Affiliation and a Conflict of Interest is the reasonable inference of partiality. Absent additional facts supporting an inference of partiality, the following frequently occurring Affiliations do not constitute Conflicts of Interest:

(i) the judge knows or recognizes a Team Member by reason of the Team Member's participation in previous moot court competitions;

(ii) the judge knows the Team Advisor(s) for one or both Teams, either because of professional or personal affiliation, prior participation in moot court competitions, or other reasons;

(iii) the judge is an alumnus of one of the schools participating in the Moot; and

(iv) the judge is an employee of one of the schools participating in the Moot where such employment is sufficiently remote from the activities of the Team as to dispel any reasonable suspicion of partiality.

4.6. Prior Viewing of Teams

(a) Subject to Rule 4.6(b) and Rule 4.6(c), judges should not view a Team that they have viewed in a previous Moot.

(b) The Administrator may permit judges to view the opposite side of one or more Teams that they have previously judged, if such viewing serves the best interests of the Competition.

(c) If a judge must view the same side of a Team twice, the Administrator must receive an express oral or written waiver before the Moot from both Teams. Once consent is obtained, neither Team may later file a complaint on the basis of this prior viewing.

4.7. Bench Memorandum

Judges must keep the contents of the Bench Memorandum strictly confidential and may not disclose them to Team Members or Team Advisors.

4.8. Commentary by Judges

Judges are encouraged to provide direct feedback to Teams regarding their performance at the completion of a Moot. In providing such feedback, judges should give due regard to the time limitations and schedule of the Rounds, and must abide by the following:

(a) In the Preliminary Rounds of any Round, Judges may not provide any feedback that would reveal the contents of the Bench Memorandum, the scores given to individual oralists, or the result of the Match.

(b) In the Elimination Rounds of any Round, Judges may not provide any feedback that would reveal the contents of the Bench Memorandum or scores given to individual oralists. The results of the Match may be revealed to the Teams only if the judges are instructed to do so by the Administrator.

RULE 5: MEMORIALS

5.1. Submission of Memorials

(a) Unless otherwise agreed in advance and in writing by the Executive Office, a Team will be disqualified from the Competition if it does not submit both its Applicant and Respondent Memorials by 17:00 (5:00 p.m.) Central Standard Time (CST) (UTC/GST – 6) on the date specified in the Official Schedule. In exceptional circumstances, a Team which is disqualified under this rule may seek a dispensation from the Executive Director after the disqualification deadline has expired. In such case, the Executive Director may impose any penalty short of disqualification that they consider appropriate. Equipment failure or problems will not be considered justification for improper formatting or late submission of Memorials.

(b) Teams may resubmit their Memorials without Penalty until the Memorial deadline.

5.2. Assistance with Translation of Memorials into English

All Memorials submitted under Rule 5.1 must be submitted in English. Teams may, if they have received permission from the Executive Director, prepare their Memorials in another language and have them translated into English. Translated Memorials must be accompanied by a certificate from the translators

stating that the contents of the Memorials were not revised, updated, or otherwise altered in the translation process. The Executive Director may disqualify any Team that alters the substantive content of its Memorial(s) during translation.

5.3. Memorial Formatting

(a) All parts of each Memorial must be contained in a single file. Memorials must be in Microsoft Word format and have a .doc or .docx file extension. Memorials that do not conform to this Rule will not be accepted. If a Team submits its Memorials in an unacceptable format, it may resubmit conforming Memorials prior to the submission deadline.

(b) All pages of the Memorial must be A4 (8.3 x 11.7 in, 21 x 29.7 cm) or letter size (8.5 x 11 in, 21.6 x 27.9 cm), with margins of at least one inch (2.54 cm) on all four sides. The Executive Office and Administrator may reformat a Memorial that does not comply with this Rule. Teams are advised that such reformatting may result in changes to pagination and layout.

(c) It is recommended that the font and size of the text of all parts of the Memorial, excluding the Cover Page and page numbers but including the footnotes, be in Times New Roman 12-point. The line spacing for all parts of the Memorial is recommended to be 1.5 lines, with the exception of the Cover Page, Table of Contents, Index of Authorities, headings, and footnotes (which can be single-spaced). A quotation to sources outside of the Memorial may be block quoted (*i.e.*, right and left indented) and single-spaced if the quotation (excluding footnotes) has at least 50 words. Memorial judges may consider formatting and presentation when they evaluate Memorials, but Teams will not receive Memorial penalties for failing to adhere to the formatting recommendations in sub-part (c) of this Rule.

5.4. Advanced Features of Microsoft Word

Teams that take advantage of advanced features of Microsoft Word – including Track Changes and Comments - while drafting their Memorials are responsible for understanding how those advanced features work. A Memorial with tracked changes that have not been properly accepted or comments that have not been properly removed prior to submission may be assessed up to a five-point Penalty. Administrators shall remove all tracked changes and comments found in an affected Memorial before submitting it to judges.

5.5. Memorial Content

(a) The Memorial must contain the following parts in the following order:

(i) Cover Page;

(ii) Table of Contents;

(iii) Index of Authorities;

(iv) Statement of Jurisdiction;

(v) Statement of Facts;

(vi) Summary of Pleadings;

(vii) Pleadings; and

(viii) Prayer for Relief (or Conclusion).

(b) Parts not enumerated in paragraph (a), for example, Questions Presented or a Table of Abbreviations, are prohibited.

(c) Apart from the cover page (which may contain an ICJ logo), Memorials must consist exclusively of text. Teams may not include media, including images, videos, audio clips, or interactive elements, in any part of their Memorials. Links may be included within citations to provide easy access to referenced sources. These links should be inserted appropriately within the citation, following an appropriate citation style. Administrators shall remove all not approved media from Memorials before submitting them to judges.

5.6. Cover Page

The front cover of each Memorial must have the following information:

(a) the Team Number in the upper right-hand corner followed by "A" if an Applicant Memorial or "R" if a Respondent Memorial (e.g., Team 123 would put "123A" in the top right-hand corner of the front cover of its Applicant Memorial);

(b) the name of the court (i.e., "International Court of Justice");

(c) the year of the Competition (the year during which the relevant International Rounds take place);

(d) the name of the case; and

(e) the title of the document (i.e., "Memorial for Applicant" or "Memorial for Respondent").

5.7. Table of Contents

The Table of Contents must list each enumerated section of the Memorial and its page number.

5.8. Index of Authorities

The Index of Authorities must list all legal authorities cited in any part of the Memorial and must

indicate the page number(s) of the Memorial on which each is cited.

5.9. Statement of Facts

The Statement of Facts should be limited to the stipulated facts and necessary inferences from the Competition Problem. The Statement of Facts should not include unsupported statements, distortions of the facts provided, argumentation, or legal conclusions.

5.10. Summary of the Pleadings

The Summary of the Pleadings should consist of a substantive summary of the Pleadings of the Memorial, rather than a simple reproduction of the headings contained in the Pleadings.

5.11. Legal Argument Limited to Pleadings

Substantive, affirmative legal argument or legal interpretation of the facts of the Competition Problem may be presented only in the "Pleadings" part of the Memorial. Summaries of such arguments may be included in the Summary of Pleadings.

5.12. Length

(a) The word count for each Memorial shall be conducted using the standard "Word Count" feature in Microsoft Word 2003 or any later release.

(i) A Team may not manipulate the word count, including by such means as removing spaces between words or abbreviations in citations where a space would normally occur in standard citation formats, using hyphens inappropriately, using non-breaking white spaces or macros, or otherwise modifying the word processor dictionary.

(ii) In addition to imposing the Penalty prescribed in Rule 11.1, the Administrator will adjust the word count in the Team's Memorial to reflect the word count if each instance of manipulation had not occurred before applying the word limits of subsections (b) through (e).

(b) The Statement of Facts, including the title, any headings or sub-headings, conclusion, associated footnotes, and any other language a Team might elect to include, must be no longer than 1,200 words.

(c) The Summary of Pleadings, including the title, any headings or sub-headings, conclusion, associated footnotes, and other language a Team might elect to include, must be no longer than 700 words.

(d) The total length of the Pleadings part, including the title, any headings, sub-headings, associated footnotes, and other language a Team might elect to include, must be no longer than 9,500 words.

(e) The total length of the Prayer for Relief (or Conclusion) part, including the title, any headings, sub- headings, associated footnotes, signature block, and other language a Team might elect to include, must be no longer than 200 words.

5.13. Citation Requirement

(a) Footnotes must be used to identify the source of statements or propositions made in the body of the Memorial. Endnotes are not permitted. Footnotes are included in the word limit of Rule 5.12.

(b) Citations appearing in the Index of Authorities and text or footnotes of the Memorial must include a description of each authority adequate to allow a reasonable reader to identify and locate it in a publication or other source of general availability. Full citations must be used in the footnotes of the Pleadings part of the Memorial the first time a source is cited. Thereafter short forms of citations may be used consistent with Rule 5.17(c). Abbreviating sources as defined terms, or short forms of citations in the Table of Authorities, in lieu of using the full citation during the first citation to that source in the Pleadings part of the Memorial is prohibited.

(c) A one-point Penalty will be assessed for each violation of this Rule, up to a maximum of five points.

5.14. Anonymity in Memorials

(a) Names of participants, and the Jurisdiction or institution name of Teams, may not appear on or within the Memorials, and Team Members may not sign their Memorials. Administrators shall strike all references to Team Members, and Jurisdiction or institution names of Teams, from Memorials before submitting them to judges.

(b) Identifying information contained in a Memorial's document properties or other metadata does not violate Rule 5.14(a).

5.15. Teams with Technological Limitations

If a Team is unable to comply with any portion of Rule 5 due to technological limitations, it may request alternative arrangements with the Executive Office. Any such request must be made as soon as possible and, at a minimum, two weeks before the Memorial deadline.

5.16. Grading of Memorials

The grading and assessment of penalties for each Memorial will be organized by the Executive Director. Prior to the commencement of the applicable Qualifying Round, the Executive Director will endeavor to ensure that each Memorial has been graded at least four times and will communicate the scores and any penalties to the relevant Administrator. The Executive Director will endeavor to ensure that each Memorial is graded at least nine times before the commencement of the International Rounds. Any scores received for Qualifying Rounds will be included in the scores used for the International Rounds, subject to exclusion under Rule 10.4.

5.17. Abbreviations (including Acronyms and Initialisms)

(a) A Team may only use abbreviations as permitted by this Rule.

(b) A Team may use any acronym or initialism:

  (i) set out in the Annex to these Rules;

  (ii) used in the Competition Problem or the Corrections and Clarifications;

  (iii) in common use in non-legal written English (for example, “e.g.”, “op.cit.”, “etc.”); or

  (iv) within footnotes that are standard references to law reports, law journals, or other sources (for example, “I.L.R.”, “A.J.I.L.”, “R.I.A.A.”).

(c) A Team may use any form of shortened reference, other than acronyms or initialisms, within a Memorial, which allows a reasonable reader to understand what is being referred to without reference back to an earlier point in the Memorial at which the term was defined. All such shortened references must be set out in full the first time they appear in the Pleadings section of the Memorial.

(d) Use of any non-permitted abbreviation is prohibited. A one-point Penalty will be assessed for each violation of this Rule, up to a maximum of three points. In addition, if the cumulative effect of correcting non-permitted abbreviations would bring the Memorial over the word count limit for a given section, then a further penalty may be assessed under the appropriate word-count Rule.

RULE 6: IN-PERSON MOOTS

6.1. General Procedures

Each In-Person Moot consists of 90 minutes of oral pleadings. Applicant and Respondent are each allotted 45 minutes. Oral presentations during the Moot must be made by two, and only two, members from each Team. Prior to the beginning of the Moot, the Team arguing as Applicant must indicate to the bailiff which Team Members will act as its first oralist and second oralist and how it wishes to allocate its

45 minutes among (a) its first oralist, (b) its second oralist, and (c) rebuttal. After Applicant has made its determinations, its opponent Team must indicate to the bailiff which Team members will act as its first oralist and second oralist and how it wishes to allocate its 45 minutes among (a) its first oralist, (b) its second oralist, and (c) surrebuttal. Teams may not allocate more than 25 minutes, including rebuttal or surrebuttal, to either oralist, although in extenuating circumstances, the Executive Director has discretion to permit a single oralist to argue beyond the 25-minute limit. Such permission must be sought, where possible at least seven days prior to the Moot. Time allocated to but not used by one oralist may not be used by the other oralist or saved for rebuttal or surrebuttal. Any Team Member may act as an oralist during any Moot in the Competition and need not always argue the same side. Teams using interpreters at In-Person Qualifying or Friendly Rounds may be allotted additional time pursuant to Rule 6.14.

6.2. Extension of Time at Judges' Discretion

The President may, at their discretion, extend an oralist's argument time beyond that allocated by the Team. In such case, the President is not required to extend the oralist's opponent's time. Such extension does not violate the 45-minute Team time limit or the 25-minute individual limit.

6.3. Three Judge Panels

In each In-Person Moot, the Administrator shall employ three judges whenever possible and may employ more than three judges in the Championship Round, provided the panel contains an odd number of judges. In extenuating circumstances, the Administrator may authorize panels of two judges, but this should be done only as a last resort. The Administrator should minimize the number of times that a Team is evaluated by a two-judge panel. In no case may an Administrator authorize that a Moot be presided over by a single judge. The Administrator may nominate one of the Judges on a panel to act as President. Where the Administrator does not nominate the President, the Judges on the panel shall determine which of them is to act as President. The President shall be responsible for the orderly conduct of the Moot in accordance with the Rules.

6.4. Order of the Pleadings

The order of the pleadings in each In-Person Moot at all levels of the Competition is: Applicant 1, Applicant 2, Respondent 1, Respondent 2, Rebuttal (Applicant 1 or 2), and Surrebuttal (Respondent 1 or 2). Once an oralist has completed their main pleading, that oralist may not make any additional

argument except for rebuttal or surrebuttal. This applies irrespective of whether the pleading Team uses all of the time it has allocated for its main pleadings. Time not used in the main pleading may not extend the time allocated to rebuttal or surrebuttal.

6.5. Rebuttal and Surrebuttal

Each Team may reserve up to five minutes for rebuttal or surrebuttal. As a courtesy to the judges, Teams are encouraged to announce at the beginning of their oral argument whether they have reserved time for rebuttal or surrebuttal and how much time they have reserved, although a failure to do so will not entail waiver of the right to rebuttal or surrebuttal. Only one of the two oralists participating in the In-Person Moot may deliver the rebuttal or surrebuttal, but the Team need not indicate in advance which of the two oralists will do so. The rebuttal shall immediately follow Respondent 2, and the surrebuttal shall immediately follow the rebuttal. Teams may waive their rebuttal or surrebuttal. If the Applicant waives rebuttal, then surrebuttal is waived as well.

6.6. Scope of Pleadings

A Team's oral pleadings are not limited to the scope of the Team's Memorial. The scope of the Applicant's rebuttal is limited to responding to the Respondent's primary oral pleadings, and the scope of the Respondent's surrebuttal is limited to responding to the Applicant's rebuttal. Although judges are admonished to enforce the limits on the scope of rebuttal and surrebuttal and may take a violation of this Rule into account in evaluating an oralist's performance, there is no discretionary or non-discretionary Penalty for exceeding the scope of rebuttal or surrebuttal.

6.7. Failure to Appear for an In-Person Moot

(a) If a Team fails to appear for a scheduled In-Person Moot, the Administrator, after waiting 30 minutes, may impose a forfeit on the absent Team and that Team will receive a loss for that Match.

(b) If both Teams fail to appear for a scheduled In-Person Moot, the Administrator, after waiting 30 minutes, may impose a double forfeit and both Teams receive losses for that Match. An Administrator may, if in the Administrator's sole opinion (i) there was a good reason for one or other of the Teams not attending the scheduled In-Person Moot, and (ii) time and administrative concerns permit, set aside the double forfeit and re-schedule the In-Person Moot. The Administrator may also, if the re-scheduling of the In-Person Moot is not possible, re-schedule an *ex parte* proceeding, subject to the same concerns and scoring rules stated in Rules 6.7(c) and 6.7(d).

(c) If the relevant In-Person Moot is part of a Preliminary Round Match, then the Administrator may schedule an additional *ex parte* proceeding for the absent Team later in the Round, if time and administrative concerns permit. The oral pleading scores from the absent Team's *ex parte* proceeding do not affect the scoring of the original In-Person Moot and are used only for purposes of calculating individual oral pleading scores and the Team's oral raw points.

(d) A Team will be deemed to have failed to appear if only one Member from a given Team appears for the In-Person Moot. If the In-Person Moot is part of a Preliminary Round Match, the absent Team's single oralist shall be allowed to plead and receive an individual score for purposes of calculating individual oral pleading scores and the Team's oral raw score, even though their Team forfeits all six Oral Round points.

(e) If a double forfeit under Rule 6.7(b) is imposed as part of a Preliminary Round Match, both Teams forfeit all six of the Oral Round Points. The Memorial Raw Scores and Memorial Round Points will still be tabulated, but these points will only count for purposes of calculating each Team's Total Raw Score and Total Round Points.

6.8. Of Counsel

During each In-Person Moot, one additional Team Member registered pursuant to Rule 3.3 may sit at the counsel table with the two oralists, as counsel. The person acting as counsel need not be the same person in each In-Person Moot.

6.9. Courtroom Communications

Except as described in Rule 6.10, no communication is permitted between any persons without permission from the President other than (1) orally, between a judge and an oralist at the podium or (2) in writing, between any two persons sitting at counsel table. In particular, no written communication or exhibits may be presented or delivered by any Team Member to any judge.

6.10. Oral Communication in the Courtroom

Each oralist may communicate with the judges, and the judges may communicate with that oralist, only during their allotted time, save as permitted by this Rule. The judges may, where necessary, communicate directly with an oralist, any Team Member at counsel table of either Team, and with any other person present in the courtroom to ensure the orderly conduct of the In-Person Moot (for example, to clarify the spelling of an oralist's name or to request that a person or persons remain quiet).

6.11. Written Communication

Communication at the counsel table between Team Members may be in writing only. Team Members at Counsel Table may not communicate in writing with judges, the oralist, or spectators (including Team Members and Team Advisors seated in the audience) during an In-Person Moot and no other person may communicate with them.

6.12. Spectators

(a) All In-Person Moots are presumptively open to the public. Teams may agree in advance, and after consultation with the Administrator, to limit the number of spectators in a room during the Preliminary Rounds. The presence of Team Advisors or other spectators affiliated with the Team is permitted in the courtroom during an In-Person Moot in which the Team is competing. Teams are responsible for ensuring that their spectators do not engage in any disruptive behavior and shall ensure that spectators do not disclose to judges the identity of their institution or country.

(b) Spectators may not communicate with Team Members at counsel table, an oralist, or judges during an In-Person Moot.

(c) An Administrator may limit the number of spectators or others who may be present at an In-Person Moot for reasons of public health or safety or the fair and efficient conduct of the Moot.

6.13. Scouting

(a) Team Members or persons directly affiliated with any Team may attend only Moots in which that Team is competing. The Executive Director may, in the interests of the Competition, (1) waive this Rule, or (2) allow Team Advisors to judge, provided such Team Advisors offer no advice to the Team they advise about the Team(s) they judge. Violation of this Rule should be brought to the attention of the Administrator immediately, without disturbing the In-Person Moot, or immediately after the In-Person Moot has finished.

(b) There are two types of scouting, both of which are prohibited. “Direct Scouting” occurs when a Team attends a Moot involving one or more Teams against which it will compete in a future Moot. “Indirect Scouting” occurs when a Team attends a Moot involving two Teams against which it is not scheduled to compete in the Preliminary or Advanced Rounds, or when a Team, through any other means, obtains or attempts to obtain information about another Team regardless of whether the Team seeking the information will compete against the Team(s) for which information is sought.

(i) A Team that commits Direct Scouting forfeits all six Oral Round Points in each future Preliminary or Advanced Round in which it competes against a Team it scouted.

(ii) A Team that commits Indirect Scouting shall forfeit one Preliminary Round Match. For example, if the Team won four Preliminary Round Matches, its total number of wins shall be reduced to three, without other adjustment to its Total Raw Points or Total Round Points. (If a Team that commits Indirect Scouting wins no Preliminary Round Matches, there shall be no such adjustment.) This adjustment shall occur prior to the determination of final Preliminary or Advanced Round rankings.

(c) During the Elimination Rounds of any Round, any Team that is still competing in the Competition (whether competing in any future Elimination Round of that Round or competing in any future Rounds) is forbidden from attending any Elimination Rounds Moots not involving that Team. Any Team which commits scouting during the Elimination Rounds of any Round will forfeit the Match in which the scouting occurred and, as a consequence, any subsequent Match in that Round in which the Team competes. In the event that scouting is discovered only after subsequent Matches have been held, the resulting forfeit(s) shall not retroactively affect the seeding of subsequent Elimination Rounds of that Round or the Matches in any future Rounds. All Teams which have participated in a Qualifying or Friendly Round may attend the championship Moot for the Round in which it has competed.

6.14. Interpreters and the Use of Interpreters

Teams may use interpreters, subject to the following provisions:

(a) In Qualifying and Friendly Rounds, the Administrator may allow Teams and/or judges to use languages other than English during In-Person Moots in that Round, and/or may provide procedures whereby interpreters may be used, by including Rules to this effect in their Rules Supplements.

(b) A member of a Team may serve as an interpreter for other members of the Team if: (a) they do not act as an oralist in the same In-Person Moot in which they are an interpreter; and (b) they do not sit at counsel table during the In-Person Moot in which they are an interpreter; and (c) they do not communicate with the Team in any way during the In-Person Moot, except to interpret the oral pleadings.

(c) When a Team employs an interpreter, they render only a literal interpretation of the oralists' pleadings and the judges' questions. No embellishment, enhancement, or clarification on the part of the interpreter is allowed. A Team that violates this Rule is subject to forfeiture of all six

Oral Round Points for that In-Person Moot.

6.15. Audio and Video Recording and Transmission

No audio or video recording or transmission of an In-Person Moot is permitted without the advance permission of the entire panel of judges, the two participating Teams, and the Administrator. In no circumstances may participating Teams view or listen to any video or audio recording of an In-Person Moot until after the completion of the Round in which the recorded In-Person Moot took place. ILSA reserves all rights to the audio and video recording, or any other form of audio or visual reproduction, of any In-Person Moot or part thereof.

6.16. Anonymity of Teams in Courtrooms

During an In-Person Moot, participants may not directly or indirectly indicate their Jurisdiction, nationality or school of origin to the judges or bailiff, including through the wearing of name tags, pins, logos, or other signifiers, or the placement of folders, files, library books, or other materials identifying their school on counsel table. For the purposes of this Rule, the term "participants" includes Team Members, Team Advisors, and spectators affiliated with the Team.

6.17. Computers, Mobile Phones, and other Electronic Devices in Courtrooms

During an In-Person Moot, oralists at the podium and Team Members seated at counsel table may not operate, for any purpose, mobile phones, laptop computers, PDAs, or any other electronic devices, including but not limited to those which are internet-enabled or data-capable, or have instant messaging capabilities. All such devices must be turned off and removed from sight as soon as the bailiff first enters the courtroom and must remain off and out of sight until the conclusion of the In-Person Moot (including the judges' deliberations and feedback). A Team that violates this Rule may forfeit up to six Oral Round Points; the Administrator shall determine a Penalty that corresponds to the severity of the violation.

6.18. Timekeeping Devices in the Courtroom

The official time of the Moot shall be indicated by the bailiff. No one other than the bailiff may display timecards or otherwise signal to the oralist how much time is left. Teams may use silent digital or analog timekeeping devices at the podium or at counsel table. However, the use of any such device which, in addition to keeping time, is capable of either (a) sending or receiving data to another person or to the

Internet, or (b) storing text data, shall be prohibited at counsel table and at the podium as a violation of Rule 6.17, even if such functionality is turned off.

6.19. The President

The Administrator may nominate one of the Judges on a panel to act as President. Where the Administrator does not nominate the President, the Judges on the panel shall determine which of them is to act as President.

RULE 7: ONLINE MOOTS

7.1. General Procedures

Each Online Moot consists of 90 minutes of oral pleadings. Applicant and Respondent are each allotted 45 minutes. Oral presentations during the Moot must be made by two, and only two members, from each Team. Time allocated to but not used by one oralist may not be used by the other oralist or saved for rebuttal or surrebuttal. Any Team Member may act as an oralist during any Moot of the Competition and need not always argue the same side.

7.2. Pre-Moot Procedure

Prior to the beginning of the Online Moot, the Team arguing as Applicant must indicate which Team Members will act as its first oralist and second oralist and how it wishes to allocate its 45 minutes among (a) its first oralist, (b) its second oralist, and (c) rebuttal. After Applicant has made its determinations, its opponent Team must indicate which Team members will act as its first oralist and second oralist and how it wishes to allocate its 45 minutes among (a) its first oralist, (b) its second oralist, and (c) surrebuttal. Teams may not allocate more than 25 minutes, including rebuttal or surrebuttal, to either oralist, although in extenuating circumstances, the Executive Director has discretion to permit a single oralist to argue beyond the 25-minute limit. Such permission must be sought, where possible, at least seven days prior to the Moot.

7.3. Three Judge Panels

In each Online Moot, the Administrator shall employ three judges whenever possible and may employ more than three judges in the Championship Round, provided the panel contains an odd number of judges. In extenuating circumstances, the Administrator may authorize panels of two judges, but this should be done only as a last resort. The Administrator should minimize the number of times that a

Team is evaluated by a two-judge panel. In no case may an Administrator authorize that a Moot be presided over by a single judge.

7.4. The President

(a) The Administrator may nominate one of the Judges on a panel to act as President. Where the Administrator does not nominate the President, the Judges on the panel shall determine which of them is to act as President. The President shall be responsible for the orderly conduct of the Moot in accordance with the Rules. The President shall have the following functions and responsibilities:

(i) to introduce the Moot;

(ii) to mute, disable the camera of, or remove any Team Member, Team Advisor or spectator of the Moot, where such action is necessary to avoid disruption;

(iii) to suspend the Moot if due to technical reasons either an oralist or a judge has been disconnected from the Moot or is having difficulty in hearing or otherwise communicating;

(iv) to extend time for any oralist beyond the time reserved, while ensuring fairness to both Teams;

(v) to determine whether to take an oralist out of the sequence set out in Rule 7.6 where it is expedient to do so or to permit substitution of an oralist (but only as permitted under Rule 7.17(d)), due to technical difficulties;

(vi) to suspend the Moot and consult the Administrator where it may be necessary to abandon a Moot (under Rule 7.17(f) & (j)), to proceed *ex parte* (under Rule 7.17(c) or (f));

(vii) to announce the conclusion of the Moot and that the judges will retire to a break-out room to deliberate;

(viii) to reconvene the judges and Teams for feedback;

(ix) in an Elimination Round, where instructed to do so by the Administrator, to announce the winner of the Match; and

(x) to end the Moot.

(b) In performing his or her responsibilities under Rule 7.4(a) the President must strive to ensure that the Moot is fair to both Teams. A Team may complain to the Administrator pursuant to Rule 11.10 about the decision of the President under Rule 7.4(a).

7.5. Timekeeping in an Online Moot

The Administrator must provide for time to be kept during each Online Moot, either by way of an electronic counter visible to the oralists and the judges, a bailiff showing timecards such that the oralists and the judges are able to see those cards, or other appropriate means determined by the Administrator.

7.6. Order of the Pleadings

The order of the pleadings in each Online Moot at all levels of the Competition is: Applicant 1, Applicant 2, Respondent 1, Respondent 2, Rebuttal (Applicant 1 or 2), and Surrebuttal (Respondent 1 or 2). Once an oralist has completed his or her main pleading, that oralist may not make any additional argument except for rebuttal or surrebuttal. This applies irrespective of whether the pleading Team uses all of the time it has allocated for its main pleadings. Time not used in the main pleading may not extend the time allocated to rebuttal or surrebuttal.

7.7. Rebuttal and Surrebuttal

Each Team may reserve up to five minutes for rebuttal or surrebuttal. As a courtesy to the judges, Teams are encouraged to announce at the beginning of their oral argument whether they have reserved time for rebuttal or surrebuttal and how much time they have reserved, although a failure to do so will not entail waiver of the right to rebuttal or surrebuttal. Only one of the two oralists participating in the Moot may deliver the rebuttal or surrebuttal, but the Team need not indicate in advance which of the two oralists will do so. The rebuttal shall immediately follow Respondent 2, and the surrebuttal shall immediately follow the rebuttal. Teams may waive their rebuttal or surrebuttal. If the Applicant waives rebuttal, then surrebuttal is waived as well.

7.8. Scope of Pleadings

A Team's oral pleadings are not limited to the scope of the Team's Memorial. The scope of the Applicant's rebuttal is limited to responding to the Respondent's primary oral pleadings, and the scope of the Respondent's surrebuttal is limited to responding to the Applicant's rebuttal. Although judges are admonished to enforce the limits on the scope of rebuttal and surrebuttal and may take a violation of this Rule into account in evaluating an oralist's performance, there is no discretionary or non-discretionary Penalty for exceeding the scope of rebuttal or surrebuttal.

7.9. Courtroom Communications

Only the oral communications with the judges described in Rule 7.10 are permitted. In particular, the oralist is not permitted to share his or her screen or present any other text or written materials at any stage. An oralist's name displayed at the bottom of their screen is permitted.

7.10. Oral Communication between Counsel and Judges

Each oralist may communicate with the judges, and the judges may communicate with that oralist, only during his or her allotted time. The President may, where necessary, communicate with an oralist, or another participant or spectator in the Online Moot, to ensure the orderly conduct of the Moot (for example, to request participants or spectators to turn off their camera or mute their microphone, or to clarify the spelling of an oralist's name).

7.11. Participants and Spectators in an Online Moot

The following people are permitted to join an Online Moot: (i) the judges assigned to that Moot; (ii) the members of each Team arguing in that Moot; (ii) the Team Advisors of each Team arguing in that Moot; (iv) the Executive Director, an Administrator, or any person approved by them to observe; and (v) any additional person permitted under Rule 7.12.

7.12. Spectators

A Team may request authorization for any other person connected to the Team (for example a family member, or a member of the institution the Team represents) to be provided with a link to allow them to observe an Online Moot remote from any member of the Team or a Team Advisor. Such a request must be made at least 48 hours before the Moot. The decision of the Administrator to grant or refuse permission is final. All persons granted permission must have their cameras switched off and their microphone muted at all times. Any person who is not a member of the Team or a Team Advisor may be in the same room as the Team or a Team Member to observe the Moot, without seeking permission under this Rule. Any person observing a Moot, whether with a Team Member or otherwise, may do so subject to their compliance with Rules 7.14, 7.15, 7.20, and 7.22. The Team is responsible for their compliance.

7.13. Location of Participants

(a) No judge of any Online Moot may be in the same room as any Member of either or both Teams

participating in that Online Moot.

(b) Two or more Team Members are permitted to be together in the same room (if local laws, regulations, guidelines and or institutional rules permit).

(c) Team Advisors are permitted to be in the same room as one or more Team Members.

(d) No members of two different Teams are permitted to be in the same room during an Online Moot.

7.14. Team Communication during an Online Moot

Team Members participating in an Online Moot may communicate with each other during the Moot in any written or electronic medium, subject to the remaining provisions of this Rule. No other person, including a Team Advisor, may communicate with any Team Member in any way during a Moot, save to give technical assistance with any equipment being used to participate in the Moot. No Team Member may communicate with an oralist in any way while they are making his or her oral argument, save to give technical assistance with any equipment being used to participate in the Moot.

7.15. Anonymity of Teams

During an Online Moot, Team Members, Team Advisors or spectators affiliated with a Team may not directly or indirectly indicate their country or school of origin to the judges, including through the display of screen names, the wearing of name tags, pins, logos, or other signifiers, or the placement of folders, files, library books, or other materials identifying their school or country in such a way as may be visible to a judge.

7.16. Configuration of Camera and Microphone

During an Online Moot, a judge shall, to the degree possible, arrange the camera so that his or her face is visible to the oralists. The oralist delivering oral pleadings shall also configure his or her camera to permit the judges to observe his or her face. All participants and spectators of a Moot shall have their microphone muted unless they are making their oral presentation, or the President asks them to speak. Judges should have their microphone muted unless they are asking a question. Oralists may sit or stand when making their submissions.

7.17. Non-Appearance of a Team and Technical Problems

(a) Where a Team or a Team Member is experiencing technical problems in joining an Online Moot,

they must inform the Administrator immediately, or as soon as possible, of the problem and the reasons (if known) for it.

(b) Where a technical problem occurs during a Moot the President shall exercise his or her discretion as to how to proceed, in accordance with Rule 7.4 and this Rule.

(c) Unless directed to the contrary by the Administrator, if a Team fails to join the Moot, the President, after waiting 30 minutes, shall allow the Moot to proceed *ex parte*. In an *ex parte* proceeding, the attending Team presents its oral pleadings, which are scored by the judges to the extent possible as if the absent Team had been present and arguing. In such a case, the Team that fails to appear for its scheduled Moot forfeits all six Oral Round Points (see Rules 7.18 & 7.19). The President should where possible consult the Administrator before exercising their powers under this Rule.

(d) Where a Team Member, who has been designated as an oralist in accordance with Rule 7.2, either is unable to join the Moot, or having joined the Moot has such technical difficulties as makes it impossible for them to commence their oral argument, the President may permit another Team Member to be

substituted, save that no Team Member may speak for longer than the time permitted by Rule 7.2. Once an oralist has commenced their oral pleading no substitution may be permitted.

(e) A Team will be deemed to have failed to appear if only one Member from a given Team appears for the Online Moot. In such an event, the absent Team's single oralist shall be allowed to plead and receive an individual score for purposes of calculating individual oral pleading scores, even though his or her Team forfeits all six Oral Round points.

(f) Where an entire Team has such technical difficulties that they are unable to continue to participate in the Moot, the President shall determine, after waiting for at least 10 minutes and not more than 15 minutes, whether the Moot should proceed on the basis of such submissions as that Team has already made, or as if the Moot had proceeded *ex parte* under Rule 7.17(c), or to abandon the Moot. The President should where possible consult the Administrator before exercising their powers under this Rule which would result in the Moot proceeding *ex parte*.

(g) Where a judge encounters technical difficulties during the course of a Moot and:

(i) the judge is unable to continue to properly participate in the Moot, then after the Moot has been suspended for not less than 5 minutes and not more than 15 minutes while efforts are made to reconnect, or

(ii) the effect of an interruption or interruptions is such that the judge is of the opinion that they are unable to fairly score the Moot, the judge may recuse themself, or the

President may determine that the Moot will proceed with only two judges. Such a Moot will be scored in accordance with Rule 10.7.

(h) Where the President encounters technical difficulties during the course of a Moot such that they are unable to properly participate in the Moot, then after the Moot has been suspended for not less than 10 minutes and not more than 20 minutes, the remaining judges shall determine which of them shall assume the role of the President. The Moot will proceed with the remaining two judges. Such a Moot will be scored in accordance with Rule 10.7. If the President, at the conclusion of the Moot, is of the opinion that the effect of an interruption or interruptions is such that they are unable to fairly score the Moot, they may recuse themself from scoring the Moot, which will be scored in accordance with Rule 10.7.

(i) Where a judge is able to rejoin a Moot only after it has re-commenced as a two-judge panel (under Rule 7.17(g) or (h)), that judge may continue to participate by asking questions of the oralists, contribute to the judges' deliberations at the conclusion of the Moot, and provide feedback after the Moot, but they may not score the Moot. Likewise a President, who is able to rejoin a Moot only after it has re-commenced with another judge having assumed the role of President, shall not resume the role of President, but may continue to participate by asking questions of the oralists, contribute to the judges' deliberations at the conclusion of the Moot, and provide feedback after the Moot, but they may not score the Moot (see Rule 7.17(k)).

(j) No Moot may proceed with only one judge participating. Such a Moot must be abandoned.

(k) In the event of technical problems during the Moot, the Team experiencing the problem must notify the Administrator as soon as possible.

(l) In the event of a technical problem during the Moot affecting a Team or a judge, the President and any judge affected shall send a brief report to the Administrator, as soon as possible after the conclusion of the Moot. The Administrator may request observations from any judge, Team Member, Team Advisor or spectator.

7.18. Abandoned and Ex Parte Online Moots – Preliminary Rounds

(a) In the event that an Online Moot has been abandoned pursuant to Rule 7.17, the Administrator shall, where possible, reschedule the Moot later in the Rounds before a different bench of judges. In the event that a Moot between the same Teams has been abandoned twice, or having been abandoned once cannot be rescheduled, then no Oral Raw Points or Oral Round Points shall be awarded in that Match. Memorial Raw Points and Memorial Round Points will be awarded, and the winner of the Match

shall be determined based on the Memorial scores.

(b) In the event that a Moot has proceeded *ex parte*, the Administrator may determine, after considering all of the available information, (i) that the result of the Moot shall stand (the Team which did not argue, or did not complete its argument, having forfeited all 6 Oral Round Points, in accordance with Rule 7.17(c)), or (ii) that the Moot shall be rescheduled, if that is possible, before a different bench of judges.

(c) Where a Moot is rescheduled pursuant to Rule 7.18(b):

(i) If both Teams are able to participate and at least two judges provide scores, then the result of the rescheduled Moot shall stand and the scores for the earlier *ex parte* Moot shall be discarded.

(ii) If the same Team as in the originally scheduled Moot is absent or is unable to complete a sufficient amount of its oral argument to be scored, then the rescheduled Moot shall be cancelled and the original *ex parte* scores shall stand.

(iii) If the other Team in the originally scheduled Moot is absent or is unable to complete a sufficient amount of its oral argument to be scored, then the Moot shall proceed *ex parte* and the *ex parte* scores from the original Moot and the rescheduled Moot shall be used to determine the outcome of the Match.

(d) The Administrator may vary the procedure adopted in this Rule in the best interests of the Competition.

7.19. Abandoned and Ex Parte Online Moots – Elimination Rounds

(a) Notwithstanding the provisions in Rule 7.17, no Elimination Round Online Moot may proceed *ex parte.* If for whatever reason, such a Moot would proceed *ex parte* or be abandoned under Rule 7.17, the President must contact the Administrator immediately. The Administrator shall make enquiries of the absent Team or the Team experiencing technical difficulties and shall if possible, after a further delay, permit the Moot to start or resume.

(b) Where such a Moot cannot be concluded such that at least two judges have provided scores, then the Administrator may reschedule the Moot, if that is possible.

(c) If such a Moot cannot be rescheduled and if one Team was absent from the Moot, that Team shall be treated as having forfeited the Match and the other Team shall advance. If both Teams were in a position to participate in the Moot but for some other reason the Moot could not proceed, then in Qualifying or Friendly Rounds the higher ranked Team from the Preliminary Rounds, or in the

International Rounds the higher ranked Team at the end of the Advanced Rounds, shall advance.

(d) If such a Moot is rescheduled the procedure in Rule 7.19(c) shall apply to determine the winner of the Match if it cannot be concluded such that at least two judges provide scores.

(e) The Administrator may vary the procedure adopted in this Rule where the Administrator decides it is in the best interests of the Competition. Specifically, the Administrator and/or the President may extend the waiting periods in Rule 7.17 to allow the Moot to be concluded.

(f) In the event that a Championship Round, including the World Championship Jessup Cup Round, cannot proceed for technical reasons, the Administrator may make such arrangements as they consider appropriate.

7.20. Scouting

(a) Team Members or persons directly affiliated with any Team (including spectators under Rule 7.12) may observe only the Online Moots in which that Team is competing. The Executive Director may, in the interests of the Competition, (1) waive this Rule, or (2) allow Team Advisors to judge, provided such Team Advisors offer no advice to the Team they advise about the Team(s) they judge. Violation of this Rule should be brought to the attention of the Administrator immediately, without disturbing the Moot, or immediately after the Moot has finished.

(b) There are two types of scouting, both of which are prohibited. “Direct Scouting” occurs when a Team observes a Moot involving one or more Teams against which it will compete in a future Moot. “Indirect Scouting” occurs when a Team observes a Moot involving two Teams against which it is not scheduled to compete in the Rounds.

(c) A Team that commits Direct Scouting forfeits all six Oral Round Points in each future Match in which it competes against a Team it scouted.

(d) A Team that commits Indirect Scouting shall forfeit one Preliminary Round Match. For example, if the Team won four Preliminary Round Matches, its total number of wins shall be reduced to three, without other adjustment to its Total Raw Points or Total Round Points. (If a Team that commits Indirect Scouting wins no Preliminary Round Match, there shall be no such adjustment.) This adjustment shall occur prior to the determination of final Preliminary rankings described in Rule 10.9.

(e) During the Elimination Rounds of any Round, any Team still in the Competition is forbidden from attending any Elimination Round matches not involving that Team. Any Team which commits scouting during the Elimination Rounds will forfeit the Match in which the scouting occurred and, as a consequence, any subsequent Match in those Rounds in which the Team competes. In the event that

scouting is discovered only after the subsequent Matches have been held, the resulting forfeit(s) shall not retroactively affect the seeding of subsequent Matches. All Teams which have participated in a Qualifying or Friendly Round may attend the championship Moot for the Round in which it has competed, subject to such arrangements being made.

7.21. Interpreters and the Use of Interpreters

An Online Moot must be conducted exclusively in English. No Team is permitted to use an Interpreter.

7.22. Recording

No recording, whether audio or video, of the whole or any part of an Online Moot is permitted by any Team or spectator. Any Team that records a Moot in breach of this Rule shall forfeit up to six Oral Round Points for the Moot recorded. No recording made in breach of this Rule shall be admissible in any complaint submitted by a Team. The rights and any intellectual property of any recording of a Moot or part thereof made in breach of this prohibition shall in any event belong to ILSA and the distribution of such a recording is strictly prohibited. ILSA may record any Online Moot. The Administrator shall retain any recording for a period of 48 hours to adjudicate upon any complaint or to permit a judge to review the Moot. The Administrator may retain any recording beyond 48 hours. Such recordings will not be broadcast or uploaded to the Internet without the consent of the Teams and judges involved. The Administrator may take and use still photographs taken from a screenshot of an Online Moot for publicity purposes and all participants in every Moot are deemed to have consented to such use. All Teams participating in the World Championship Jessup Cup Moot will be deemed to have consented to the recording, broadcasting, or uploading to the Internet of that Moot.

RULE 8: QUALIFYING AND FRIENDLY ROUNDS

8.1. Structure

The Administrator shall determine the structure of Qualifying or Friendly Rounds in consultation with the Executive Director. Unless otherwise set out in a Rules Supplement, the Qualifying or Friendly Round shall consist of Preliminary Rounds and Elimination Rounds as set out in this Rule.

8.2. Preliminary Rounds

Each Team participating in a Qualifying or Friendly Round shall participate in Preliminary Rounds consisting of four Matches, twice as Applicant and twice as Respondent. If four or fewer Teams are

participating in the Round, the Executive Director may permit fewer Matches, and the Administrator shall work with the Executive Director to decide an appropriate match schedule, pairing procedure, and scoring system. Each Team shall, to the degree possible, face any opposing Team only once in the Preliminary Rounds of a Qualifying or Friendly Round. In the event that Teams must face each other in two Matches, each Team shall plead as Applicant in one Match and Respondent in the other Match.

8.3. Pairings

The pairing of Teams for Preliminary Rounds shall be done, in the first instance, by a random draw. Pairings and Memorials of opposing Teams will be distributed to Teams on or prior to the first day of the Round. The Administrator may modify the pairings to account for absent Teams or other contingencies. If Teams must be newly paired, they must be provided their new opponents' Memorials as soon as reasonably possible, but at the very least 15 minutes prior to the start of the newly paired Moot.

8.4. Elimination Rounds

(a) Unless otherwise specified in a National Rules Supplement, Eliminations Rounds shall consist of the following:

(1) If 96 or more teams are expected to compete: Round of 32, Octofinals, Quarterfinals, Semifinals, and a Championship Round;

(2) If 48 to 95 teams are expected to compete: Octofinals, Quarterfinals, Semifinals, and a Championship Round, *provided*, *however*, that if 64 or more teams are expected to compete, the Administrator may, in their discretion, add a Round of 32;

(3) If 24 to 47 teams are expected to compete: Quarterfinals, Semifinals, and a Championship Round, *provided*, *however*, that if 32 or more teams are expected to compete, the Administrator may, in their discretion, hold Octofinals;

(4) If 12 to 23 teams are expected to compete: Semifinals and a Championship Round, *provided*, *however*, that if 16 or more teams are expected to compete, the Administrator may, in their discretion, hold Quarterfinals;

(5) If 11 or fewer teams are expected to compete, a Championship Round, *provided*, however, that if 8 or more teams are expected to compete, the Administrator may, in their discretion, hold Semifinals.

(b) At each level of the Elimination Rounds, the pairings shall be determined by "power seeding" based upon the final rankings from the Preliminary Rounds.

8.5. Pleading Option

(a) In each Elimination Round other than the Championship Round, the higher-ranking Team from the Preliminary Rounds shall have the right to choose which side it will argue. This right is called the "Pleading Option."

(b) Prior to the exercise of the Pleading Option, each Team advancing to the Elimination Rounds will be given its completed master Team scoresheet from the Preliminary Rounds, but not individual judges' scoresheets or notes.

(c) The Administrator shall choose a means of random decision in determining the Pleading Option for a Championship Round.

(d) The Team with the Pleading Option has ten minutes to decide which side it wishes to plead. If that Team fails to select, then the opposing Team has five minutes to do so. If the opposing Team fails to exercise the Pleading Option within a five-minute period, the higher-ranked Team will argue Applicant and the lower-ranked Team will argue Respondent.

(e) Once the sides have been determined, the Administrator will immediately notify both Teams. The Administrator will give each Team the appropriate Memorial of its opponent. The Teams will then be granted a reasonable time to prepare for the Moot.

RULE 9: INTERNATIONAL ROUNDS

9.1. Eligibility

All Representatives approved for that purpose by the Executive Director are eligible to compete in the International Rounds.

9.2. Structure

The International Rounds shall consist of (i) the Preliminary Rounds, (ii) the Advanced Rounds, (iii) the Elimination Rounds, and (iv) the World Championship Jessup Cup Round.

9.3. Scheduling Conflicts

No later than four weeks prior to the Preliminary Rounds, Teams must notify the Executive Director in writing of any potential schedule conflicts owing to religious observances or similar concerns. The Executive Director will make every effort to make appropriate accommodation.

9.4. Preliminary Rounds

The Preliminary Rounds of the International Rounds consist of four Matches, with each Team pleading twice as Applicant and twice as Respondent.

9.5. Pairings for the Preliminary Rounds

(a) The Executive Director shall establish the pairings for the Preliminary Rounds, in the first instance, by reference to the Memorial Scores. The Executive Director may modify the draw to ensure (i) geographical and competitive diversity and (ii) balance.

(b) Pairings for the Preliminary Rounds and the Memorials of opposing Teams will be distributed to Teams on or prior to the first day of the International Rounds.

(c) The Executive Director may subsequently modify the pairings to account for absent Teams or other unforeseen contingencies. In such case, the Executive Director will notify affected Teams and deliver their opponents' Memorials as soon as possible.

9.6. Advanced Rounds

The Advanced Rounds of the International Rounds will consist of two Matches, with each Team pleading once as Applicant and once as Respondent.

9.7. Determining the Teams Advancing to the Advanced Rounds

(a) The number of Teams advancing from the Preliminary Rounds to the Advanced Rounds will be one-third of the number of Teams competing in the Preliminary Rounds, rounded up to the next whole number.

(b) Teams qualify for the Advanced Rounds based upon their ranking at the end of the Preliminary Rounds, provided, however, that only twelve Teams from any one jurisdiction may advance. If the application of this Rule disqualifies one or more Teams, a corresponding number of the next highest ranked Team(s) that did not otherwise qualify for the Advanced Rounds shall be added. This subsequent addition shall also be subject to this Rule 9.7(b).

9.8. Pairings for the Advanced Rounds

(a) The pairings for the Advanced Rounds shall be set by the Executive Director by reference to raw score achieved by the advancing teams in the Preliminary Rounds. The number of advancing teams will be placed (so far as possible) in two groups by reference to the raw scores with one group containing

the top half of the raw scores, and the second group the lower half of the raw scores. Each team shall face one opponent from each group in the Advanced Rounds. No teams that have met in the Preliminary Rounds shall be paired together in the Advanced Rounds.

(b) Pairings for the Advanced Rounds and the Memorials of opposing Teams will be distributed to Teams as soon after the advancing teams have been announced as possible.

(c) The Executive Director may subsequently modify the pairings to account for absent Teams or other unforeseen contingencies. In such case, the Executive Director will notify affected Teams and deliver their opponents' Memorials as soon as possible.

9.9. Elimination Rounds

(a) The Elimination Rounds of the International Rounds consist of the Octofinal Round, the Quarterfinal Round, the Semifinal Round, and the World Championship Round.

(b) At the end of the Advanced Rounds, the top sixteen (16) Teams shall qualify for the Octofinal Rounds based upon their ranking at the end of the Advanced Rounds, taking into account the six-matches from the Preliminary and Advanced Rounds. Only eight Teams from any one jurisdiction may advance. If the application of this Rule disqualifies one or more Teams, a corresponding number of the next highest-ranked Team(s) that did not otherwise qualify for the Elimination Rounds shall be added. This subsequent addition shall also be subject to this Rule 9.9(b).

9.10. International Octofinals, Quarterfinals, Semifinals, and World Championship

The Octofinal Round consists of eight pairings of the sixteen Teams that qualified from the Advanced Rounds as determined by Rule 9.9(b). The Quarterfinal Round consists of four pairings of the eight Teams that win in the Octofinal Round. The Semifinal Round consists of two pairings of the four Teams that win in the Quarterfinal Round. The two winning Teams from the Semifinal Round advance to the World Championship Jessup Cup Round.

9.11. Pairings for Elimination Rounds

In each Elimination Round of the International Rounds except the World Championship Round, the pairings shall be determined by use of "power-seeding," *i.e.,* the highest-ranked Team shall compete against the lowest- ranked Team; the second highest-ranked Team shall compete against the second-lowest-ranked Team, *etc*. For the purposes of this Rule, all rankings shall be determined by the final standings at the end of the Advanced Rounds.

9.12. National Pair-Off Qualification

(a) Octofinal Round

(i) If eight Teams from a given jurisdiction advance to the Octofinal Round, the first-ranked Team shall be paired against the eighth-ranked Team, the second-ranked Team against the seventh-ranked Team, the third-ranked Team against the sixth-ranked Team, and the fourth-ranked Team against the fifth-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(ii) If seven Teams from a given jurisdiction advance to the Octofinal Round, the second-ranked Team shall be paired against the seventh-ranked Team, the third-ranked Team against the sixth- ranked Team, and the fourth-ranked Team against the fifth-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(iii) If six Teams from a given jurisdiction advance to the Octofinal Round, the third-ranked Team shall be paired against the sixth-ranked Team, and the fourth-ranked Team against the fifth-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(iv) If five Teams from a given jurisdiction advance to the Octofinal Round, then the fourth-ranked Team shall be paired against the fifth-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(b) Quarterfinal Round

(i) If four Teams from a given jurisdiction advance to the Quarterfinal Round, the first-ranked Team the fourth-ranked Team, and the second-ranked Team shall be paired against the third-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(ii) If three Teams from a given jurisdiction advance to the Quarterfinal Round, the second-ranked Team shall be paired against the third-ranked Team. All Teams not affected by this qualification shall then be paired according to the general pairing Rules.

(c) Semifinal Round. If two Teams from a given jurisdiction advance to the Semifinal Round, those two Teams shall be paired against one another. The other two Teams will also be paired against one another.

9.13. Previous Meeting Qualification

If the application of Rules 9.11 and 9.12 would result in a Team facing an opponent that it faced in the International Preliminary or Advanced Rounds, the Executive Director will adjust the pairings in an equitable manner in order that such pairing is avoided. If the Executive Director determines that, with respect to a given pairing, no adjustment is possible, the Executive Director may disregard this qualification with respect to such pairing.

9.14. Pleading Option in the Elimination Rounds

(a) Prior to the commencement of the International Elimination Rounds, the Executive Director will give each Team advancing to the Elimination Rounds a copy of its completed Team master scoresheet.

(b) In the Octofinal Round, the higher-ranked Team at the end of the Advanced Rounds shall have Pleading Option.

(c) The Executive Director shall choose a means of random decision for determining the Pleading Option for the Quarterfinals and all subsequent Elimination Rounds.

(d) The Team with the pleading option has ten minutes to decide which side it wishes to plead. If that Team fails to select, then the opposing Team has five minutes to do so. If the opposing Team fails to exercise its Pleading Option within a five-minute period, the higher-ranked Team will argue Applicant and the lower-ranked Team will argue Respondent.

(e) Once the sides have been determined, the Administrator will immediately notify both Teams. The Administrator will give each Team the appropriate Memorial of its opponent. The Teams will then be granted a reasonable time to prepare for the Moot.

RULE 10: COMPETITION SCORING

10.1. Basis for Scores

Judges are instructed to judge the Teams on the overall quality of their performances, not on the underlying merits of the case.

10.2. Preliminary and Advanced Rounds

(a) Scoring of the Preliminary and Advanced Rounds shall consist of two parts: the written Memorials and the Moot.

(b) Each Memorial judge will score each Memorial on a scale of 50 to 100 points.

(c) Each Moot judge will score each oralist on a scale of 50 to 100 points.

10.3. Calculation of Scoring Points

Two categories of points shall be awarded to Teams in each Match: Raw Score and Round Points.

10.4. Average Memorial Score

The Average Memorial Score shall be determined by taking an average of all of the scores obtained by the Executive Director for a Memorial. Before taking the average, the Executive Director shall exclude any score where a judge's score is 12 points or more away from the average of the scores received. Where a score is excluded, the Executive Director shall eliminate all record of that score and will, if necessary, allocate the Memorial to an additional judge to ensure that the minimum number of judges required by Rule 5.16 is achieved.

10.5. Raw Scores

(a) Memorial Raw Scores: In each Match, the Total Memorial Raw Score for each Team is the Average Memorial Score for the side the Team argued in that Match multiplied by three. A Team's Total Competition Memorial Raw Score is the sum of the Average Memorial Score of its Applicant Memorial multiplied by three and the Average Memorial Score of its Respondent Memorial Score multiplied by three. This score shall be used to determine Best Memorial Awards.

(b) Oral Raw Score: In each Match, a Team's Total Oral Raw Score is the sum of the scores of the three judges for each of its two oralists.

(c) Total Raw Scores: In each Match, a Team's Total Raw Score is the sum of the Team's Total Memorial Raw Score and Total Oral Raw Score for that Match. A Team's Total Competition Raw Score is the sum of the Total Raw Scores from each of its Matches.

(d) The calculation of Raw Scores shall be subject to the deduction of Penalty points under the provisions of Rule 11.

10.6. Round Points

(a) Memorial Round Points: In each Match, a total of three Round Points will be awarded based on comparing the Average Memorial Score of the Applicant and Respondent Memorials, as applicable, of the Teams competing in that Match, on the following basis:

(i) Where the difference in the Average Memorial Score is 10 points or more, then the Memorial with the higher Average Memorial Score is awarded 3 Memorial Round Points, and

the other Memorial zero Memorial Round Points.

(ii) Where the difference in the Average Memorial Score is between 6 points and 9.99 points, then the Memorial with the higher Average Memorial Score is awarded 2.5 Memorial Round Points, and the other Memorial 0.5 Memorial Round Points.

(iii) Where the difference in the Average Memorial Score is between 2.5 points and 5.99 points, then the Memorial with the higher Average Memorial Score is awarded 2 Memorial Round Points, and the other Memorial 1 Memorial Round Point.

(iv) Where the difference in the Average Memorial Score is within 2.5 points, then each Memorial shall be awarded 1.5 Memorial Round Points.

(b) Oral Round Points: In each Match except in the case of a double forfeit described in Rule 6.7(b), a total of six Round Points is awarded based on a comparison of combined oral argument scores. The sum of each judge's score for Applicant's two oralists is compared to the sum of that judge's scores for Respondent's two oralists. For each judge, the Team with the highest combined oralist score is awarded two Round Points. If in any such comparison, the two Teams' scores are equal, each Team is awarded one Round Point.

(c) Total Round Points: In each Round, a Team's Total Round Points is the sum of the Team's Memorial Round Points and Oral Round Points.

10.7. Two-Judge Panels

If only two judges score a given Moot, the Administrator shall create a third score and scoresheet by averaging the scores of the two judges.

10.8. Determining the Winner of a Preliminary or Advanced Round Match

In any given match, the Team receiving more of the nine available Round Points wins the Match. If the two Teams each receive 4.5 Round Points, the Team with the higher Total Raw Score wins the Match. If the two Teams have an equal number of Round Points and an equal Total Raw Score, the Match is a draw. The same method is deployed if a Match is determined solely on Memorial scores under Rule 7.18(a).

10.9. Preliminary and Advanced Round Rankings

(a) Teams shall be ranked by number of wins in the Preliminary Rounds and, where Advanced Rounds have been held, by the number of wins in the Preliminary and Advanced Rounds taken together,

from highest to lowest.

(b) If two or more Teams have the same number of wins, the Team having the higher number of draws shall be ranked higher.

(c) If two or more Teams have the same number of wins and the same number of draws, the Team having the higher Total Competition Raw Score from the Preliminary Rounds and, where Advanced Rounds have been held, by the Total Competition Raw Score from the Preliminary and Advanced Rounds taken together shall be ranked higher.

(d) If two or more Teams have the same number of wins, the same number of draws and the same Total Competition Raw Score, the Team with the higher Total Competition Round Points from the Preliminary Rounds and, where Advanced Rounds have been held, by the Total Competition Round Points from the Preliminary and Advanced Rounds taken together shall be ranked higher.

10.10. Tie-Breaking Procedure

(a) If two or more Teams are tied after application of Rule 10.9, and the outcome of the determination does not affect (i) any Team's entry into the Advanced or Elimination Rounds, or (ii) the pairing of any Teams in the Elimination Rounds of the Round, the Teams shall be ranked equally. If, however, further determination is necessary, the rankings shall be accomplished according to sections (b) and (c) of this Rule.

(b) If only two Teams are tied and if the tied Teams have faced each other in the Preliminary or Advanced Rounds, the winner of that Match shall be ranked higher.

(c) If two or more Teams are tied and the Teams have not faced each other in the Preliminary or Advanced Rounds, the Administrator shall break the tie according to the following methods, starting with the first and working down only if the prior method does not break the tie:

(i) the Team with the higher total oralist and Memorial score average wins, calculated by adding the Team's Total Competition Oral Raw Score divided by 24 and the Team's Total Competition Memorial Raw Score divided by six;

(ii) the Team whose opponents won more Matches wins, calculated by adding the number of wins of the Teams' opponents and for this purpose only, counting a draw as one-half of a win;

(iii) the Team wins whose opponents scored higher, calculated by adding the Total Raw Scores of the Teams' opponents;

(iv) the Team with the higher total oralist score average wins, calculated by dividing the

Total Competition Oral Raw Score by 24; or

(v) the Administrator determines a method to break the tie, taking into account the interests of the Teams and the Competition as a whole.

10.11. Scoring Procedures for Elimination Rounds – Qualifying and Friendly Rounds

The following scoring procedures and guidelines shall apply to Elimination Rounds of Qualifying and Friendly Rounds. The Administrator shall make available to the judges of Elimination Rounds the Team Memorials of both Teams. The judges may have regard to the Memorials and oral arguments in determining the winner of the Elimination Round. The decision regarding the winner of the Round shall be by majority vote of the judges, with each judge awarding one point to the Team whose argument that judge determines is superior. No ties are allowed.

10.12. Scoring in Elimination Rounds – International Rounds

(a) In each Elimination Round of the International Rounds, except for the Championship Round, scoring for each Match shall be conducted according to this Rule. Judges must not disclose to the Teams the exact score in each Match, and each judge's determination; only the identity of the winning Team shall be revealed.

(b) Three judges shall read the Applicant Memorial of the Team arguing Applicant and the Respondent Memorial of the Team arguing Respondent. The Team whose Memorial each judge determines is superior will receive one point. No judge may split his or her point. Thus, three points are allocated by the Memorials judges. Penalties from the Preliminary Rounds shall not apply in the Elimination Rounds.

(c) Three judges shall sit for the Moot. The Team whose presentation each judge determines is superior will receive two points from that judge. If a judge determines that the two oral presentations were of equal quality, each Team will receive one point. Thus, six points in aggregate are allocated by the Moot judges.

(d) The winner of the Match is the Team with the greater of the nine points allocated by Memorials and Moot judges.

10.13. World Championship Round – International Rounds

Judges of the World Championship Round shall follow the procedure set out in Rule 10.11 to determine the winner of the Match.

10.14. Ranking of Oralists

(a) Individual oralists who have argued in two or more Preliminary Rounds shall be ranked from highest to lowest average oral score. An oralist's average oral score is the average of the scores awarded to that individual by each judge during the Preliminary Rounds, excluding the single lowest score awarded to the oralist. Additionally, any artificially generated scores (i.e. average scores from a two-judge panel) will not be included in an oralist's average oral score calculation.

(b) At the International Rounds, individual oralists who have argued in one or more Preliminary and Advanced Rounds shall be ranked from highest to lowest average oral score. An oralist's average oral score is the average of the scores awarded to that individual by each judge during the Advanced Rounds.

(c) At the International Rounds – and at any Qualifying Rounds where the Administrator so elects – ties in the rankings may be broken by comparing the lowest score awarded to each oralist involved in the tie, with a higher ranking awarded to the oralist with the higher lowest score. Further ties may be broken by comparing the second-lowest score awarded to each oralist, then the third-lowest score, and so on.

10.15. Ranking of Memorials

(a) The total Memorial scores for each Team shall be determined by adding the Memorial Raw Score of the Applicant Memorial and the Memorial Raw Score of the Respondent Memorial. Team Memorials shall be ranked by the Administrator from the highest total Memorial score to the lowest. Ties are permitted. Scores shall be adjusted for Penalties per Rule 11.

(b) For purposes of the M. Cherif Bassiouni Awards and the Alona E. Evans Awards – and at any Qualifying Rounds where the Administrator so elects – ties in the rankings may be broken by comparing the lowest of the Applicant or Respondent Memorial Raw Score of each Team involved in the tie, with a higher ranking awarded to the Team with the higher applicable Memorial Raw Score. Further ties may be broken by comparing the lowest single Memorial score awarded to each Team in the tie, the second-lowest single Memorial score awarded to each Team in the tie, and so on.

10.16. Reporting of Results

After the conclusion of a Qualifying or Friendly Round, each participating Team shall receive the information set out below or as set out in the applicable Rule Supplement. After the conclusion of the International Rounds, each participating Team shall receive:

(i) a copy of individual Moot judges' scoresheets and Penalties, if any, with any attendant comments from Preliminary and Advanced Rounds;

(ii) a copy of the Overall Rankings of the Preliminary and Advanced Rounds, with the Total Win-Loss records, Overall Raw Scores, and Overall Round Points;

(iii) a copy of the oralist Rankings from the Preliminary and Advanced Rounds;

(iv) a copy of the Memorial Rankings; and

(v) a summary of the Elimination Rounds.

RULE 11: PENALTIES

11.1. Memorial Penalties

(a) Memorial Penalties will be imposed by an Administrator designated by the Executive Director and shall be deducted from each of the individual judges' scores on a Team's Memorial.

(b) The minimum adjusted score that any Team may receive from any individual Memorial judge is 50 points. No further reduction may be made to scores after the minimum score is reached, regardless of unallocated Penalty points remaining.

(c) In instances where only one Memorial is subject to Penalties, those Penalties will be deducted from the scores of that Memorial only.

(d) The Executive Director or Administrator shall notify all affected Teams of imposed Penalties and shall include with such notification a reasonable deadline and method for any appeals from the decision to impose Penalties. A Team may appeal any Penalty imposed against its Memorials via the means set out in the notification. The Executive Director shall adjudicate any such appeal. Teams may not appeal Penalties (or the lack thereof) imposed against another Team's Memorial.

(e) Penalties shall be assessed for violations of the Rules concerning Memorials by reference to the following table:

Rule	**Summary**	**Penalty**	
5.4	Failure to remove Tracked Changes or Comments	Up to 5 points (one-time penalty)	
5.5	Failure to include all parts of Memorial, or inclusion of an un-enumerated part	2 points for each part	
5.5 (c)	Use of unapproved media	Up to 5 points (one-time penalty)	
5.6	Failure to include necessary and correct information on Memorial Cover Page	2 points (one-time penalty)	
5.11 (d)	Excessive length: Pleadings	1-100 words over	3 points
		101-200 words over	6 points
		201-300 words over	9 points

		301-400 words over	12 points
		401+ words over	15 points
5.11 (c)	Excessive length: Summary of Pleadings	2 points (one-time penalty)	
5.11 (b)	Excessive length: Statement of Facts	2 points (one-time penalty)	
5.11 (e)	Excessive length: Prayer for Relief (Conclusion)	2 points (one-time penalty)	
5.11 (a)	Word Count Manipulation	1 point per instance, up to a maximum of 10 points per Memorial.	
5.12	Improper citation of authority	1 point per instance, up to a maximum of 5 points per Memorial.	
5.13, 2.17	Violation of anonymity in Memorial	Up to 10 points (one-time penalty), or disqualification	
5.16	Use of non-permitted abbreviation	1 point per instance, up to a maximum of 3 points per Memorial	
11.2	Plagiarism	1 to 50 points, or disqualification	

11.2. Plagiarism

Teams shall not commit plagiarism. "Plagiarism" means appropriating the literary composition of another, or parts or passages of another's writings, or the ideas or language of another, and passing them off as the product of one's own mind. Administrators shall refer all allegations of plagiarism to the Executive Director. After investigation and review, in a verified case of plagiarism, the Executive Director may (1) disqualify the Team, (2) assess a Penalty between one and 50 points to each offending Memorial, with the Penalty corresponding to the degree of the violation in the judgment of the Executive Director, and/or (3) notify the Team's dean and/or other institution official(s).

11.3. Moot Penalties

The Administrator shall impose a Moot Penalty, if necessary, after consultation with the judges, bailiff, Teams, and/or spectators. Upon determining that a violation has occurred, the Administrator shall determine whether the Penalty amount should be deducted from (a) an individual oralist's score or (b) the Team's combined score (the sum of the judge's score for oralist 1 and oralist 2), based upon the nature of the violation. In either case, the Administrator shall deduct the Penalty amount from each judge's score before determining the Oral Round Points. The minimum adjusted score that any oralist may receive from any individual Moot judge is 50 points. No further reduction may be made to scores after the minimum score is reached, regardless of unallocated Penalty points remaining.

11.4. Deduction of Penalties by Judges Prohibited

Penalty points may be deducted only by the Administrator. Judges may not deduct any Penalty points from the scores of the oralists. Judges shall score the Moot as if no violation occurred, and may take an infraction into account only if so instructed by the Administrator.

11.5. Activity Subject to Moot Penalties – Preliminary Rounds

During Preliminary and Advanced Rounds, Penalties shall be assessed for violations of the Rules concerning Memorials by reference to the following table: Penalties may be assessed for violations of the Rules concerning Moots by reference to the following table.

Rule	Summary	Penalty
6.1 & 7.1	Exceeding maximum time for one speaker	Up to 3 points.
6.4 & 7.6	Improper sequence of oralists	Up to 5 points.
6.5 & 7.7	Exceeding maximum time for rebuttal or surrebuttal	Up to 5 points.
6.9, 6.10, 6.11, 6.12, 7.9, 7.10 & 7.14	Improper courtroom communications	Up to 10 points
6.13 & 7.20	Scouting	Forfeiture of one preliminary Match if indirect; forfeiture of all six oral Round Points if direct scouting, to be deducted in the Match against the Team that was scouted. Forfeiture of Elimination Round in which scouting and forfeiture of prior Elimination Round victories with no retroactive effect on seeding.
6.14 & 7.21	Improper conduct regarding interpreters	Up to 10 points.
6.16, 7.15, & 2.17	Violation of anonymity in courtroom	Up to 15 points, or disqualification.
6.17 & 6.18	Improper electronic devices	Up to 10 points.

11.6. Activity Subject to Moot Penalties - Elimination Rounds

During Elimination Rounds, Penalties may be assessed for violations during a Moot with a Penalty equivalent in impact, in the Administrator's discretion, to that which would have been imposed in a Preliminary Round under Rule 11.5. Such penalties may include deduction of points assigned under Rule

10.11 or 10.12, forfeiture of the Match, and disqualification from the Competition.

11.7. Notice and Appeals

The Administrator shall notify Teams of any decision regarding imposition of a Moot Penalty as soon as practicable. Along with the decision, the Administrator shall set a reasonable deadline by which either Team may appeal to the Executive Director. If an appeal is submitted, the Executive Director shall consult with the Administrator to resolve it. The Executive Director's decision on all appeals is final.

11.8. Discretionary Penalties

(a) In addition to the Penalties listed in Rule 11.5, the Administrator may assess up to 15 points in Discretionary Penalties for other violations of the letter or spirit of these Rules. The size of the Penalty shall correspond to the degree of the violation in the judgment of the Administrator. Discretionary Penalties may be imposed upon a Team for conduct of its Team Members or of persons affiliated with the Team, such as:

(i) poor sportsmanship;

(ii) submitting multiple frivolous complaints against other Teams;

(iii) inappropriate behavior at the counsel table during an In-Person Moot or inappropriate behavior between Team Members and or Team Advisors during an Online Moot;

(iv) blatant disregard for the procedures or requirements outlined in the Rules.

(b) Other conduct seriously contrary to the integrity of the Competition (for example, inappropriate *ex parte* communications with judges either before or after a Moot or submitting a Memorial that is wholly inadequate) may, at the sole discretion of the Executive Director, result in a Team being disqualified from the Competition.

(c) The Administrator may impose Discretionary Penalties for conduct during Elimination Rounds in size equivalent in impact, in the Administrator's discretion, to that which would have been imposed in a Preliminary Round under Rule 11.8(a).

11.9. De Minimis Rule

The Administrator or Executive Director may waive or reduce the penalty, whether in the original decision or on appeal, for a *de minimis* Rule violation.

11.10. Complaints About the Conduct or Result of a Match

(a) If a Team believes that a violation of the Rules has occurred during a Moot, the Team must inform the Administrator as soon as reasonably practicable after the violation becomes known to the Team, and in any event within 15 minutes of the completion of the Moot. The Administrator may request that the complaint is reduced to writing (if not already in writing) and may set a reasonable time limit for so doing. Any complaint not raised or reduced to writing within the time stipulated is waived. No written complaint may exceed 500 words without the express permission of the Administrator.

(b) A Team shall not discuss its complaint with any judges or other witnesses to the alleged violation(s) until after the final decision on the complaint is determined by the Administrator and any appeal to the Executive Director has been determined.

(c) If a judge believes that a violation of the Rules has occurred during a Moot, the judge shall notify the Administrator as soon as possible, without discussing the matter with either Team.

(d) A Team's allegation, however well supported, that the judge(s) of a Moot, or of a Memorial, reached the wrong conclusion or gave an incorrect score cannot be the basis for a complaint.

(e) The Administrator will timely reply to a complaint, notifying the complainant and the affected Team(s). The Administrator will devise and implement appropriate remedies to address complaints regarding the conduct of a Moot, but only if the Administrator determines that the outcome of the Match has been materially affected.

(f) In any Round which is not administered by the Executive Director, any decision of an Administrator may be appealed to the Executive Director within 1 hour of the decision being communicated to the Team. The Executive Director's decision on all appeals is final.

11.11. Complaints Made During a Qualifying or Friendly Round

(a) Any Team which is aware of an issue concerning the organization of a Round shall raise the issue with the Administrator as soon as the Team becomes aware of the issue or potential issue. Examples of such issues might include, but are not limited to, whether a particular judge might have a conflict of interest; that the Preliminary Round pairings do not comply with these Rules; or that the pairings for the Elimination Rounds have not been done in accordance with these Rules. The Administrator shall respond promptly to any concern raised.

(b) In any Round which is not administered by the Executive Director, any decision of an Administrator may be appealed to the Executive Director within 1 hour of the decision being communicated to the Team. The Executive Director's decision on all appeals is final.

11.12. Complaints Made After a Qualifying or Friendly Round

(a) A Team may submit a complaint to the Executive Director concerning one or more violations of the Rules in connection with the administration of a Qualifying Round that it alleges materially deprived it of an opportunity to advance to the International Rounds. Such complaint must be submitted to the Executive Director and the Administrator via email no later than 48 hours after the latter of (i) the conclusion of the Qualifying Round or (ii) delivery of the Team's Master Scoresheet, *provided, however*, that complaints that the Team was aware of prior to the conclusion of the National Rounds must be brought pursuant to Rule 11.11. Such complaint must not exceed 500 words without the express permission of the Executive Director.

(b) Only a Team claiming that, as a result of a violation, it was materially deprived of an opportunity to advance to the International Rounds shall have standing to file a complaint based upon that violation. Any other allegations of violations shall be treated as comments or suggestions under Rule 11.12(h).

(c) If, at the time a violation occurs, a Team that is aware of the violation fails to bring it to the attention of the Administrator in accordance with Rule 11.10, and if such violation could have been remedied by prompt action of the Administrator, the Team may not raise a complaint based upon that violation under this Rule.

(d) A complaint must include the following information:

(i) the Team number, school, and contact information of the complaining Team;

(ii) the specific facts constituting the alleged violation(s);

(iii) a description of how the violation(s) materially deprived the team of an opportunity to advance to the International Rounds; and

(iv) the identities and contact information of any witnesses to the violation(s).

(e) A Team shall not discuss its complaint with any judges or other witnesses to the alleged violation(s) until after the final decision on the complaint is determined by the Executive Director.

(f) A Team's allegation, however well supported, that the judge(s) of a Moot, or of a Memorial, reached the wrong conclusion or gave an incorrect score cannot be the basis for a complaint.

(g) The Executive Director will timely reply to a complaint, notifying the complainant and the affected Team(s). If the Executive Director concludes that a violation occurred and materially deprived the complaining Team of an opportunity to advance to the International Rounds, they shall impose an appropriate remedy, including but not limited to: overruling the results of one or more Elimination

Rounds; changing the Team declared as the winner of the Round; inviting one or more additional Teams to attend the International Rounds as additional representatives of the Jurisdiction in question; or issuing a formal apology to the complaining Team(s).

(h) Teams are encouraged to offer suggestions to the Administrator and or the Executive Director for the improvement of the Competition.

(i) Teams participating in a Friendly Round may not make a complaint under Rule 11.12 but are encouraged to make suggestions under Rule 11.12(h).

RULE 12: AWARDS

12.1. The World Championship

The Team that wins the World Championship will receive two awards: a trophy to keep, and the Jessup Cup to hold in trust for one year at its institution. Such Team shall take full responsibility for the safety and condition of the Jessup Cup while it is in the Team's custody and is responsible for returning the Jessup Cup in good condition to the Executive Director before the next year's International Rounds. The World Championship Team is responsible for engraving its institution's name on the Jessup Cup.

12.2. The M. Cherif Bassiouni Award

The M. Cherif Bassiouni Award is presented to Teams for excellence in Memorial writing. The Memorials of the Team with the highest total Memorial score in any Qualifying Rounds shall be entered, without further action by the Team, to compete for the M. Cherif Bassiouni Award. The Executive Director shall endeavor to ensure that each Memorial eligible to compete for the Bassiouni Award is graded by five judges. Awards will be presented to the top five Teams, based on the Average Memorial Scores, unadjusted for penalties.

12.3. The Alona E. Evans Award

The Alona E. Evans Award is presented to Teams for excellence in Memorial writing at the International Rounds. Awards will be presented to the top twenty Teams based on total Memorial scores in the International Rounds.

12.4. The Ved P. Nanda Awards

The Ved P. Nanda Awards are presented to individual oralists who are ranked the highest after the Preliminary and Advanced Rounds of the International Rounds.

12.5. The Richard Baxter Awards

The Richard Baxter Awards are presented to Teams for excellence in Memorial writing by comparing individual Applicant and Respondent Memorials. There are two Baxter Awards: one for the Best Overall Applicant Memorial and one for the Best Overall Respondent Memorial. The Applicant Memorials that were considered for the Alona E. Evans Award or a M. Cherif Bassiouni Award that received the highest ten total Memorial scores for Applicant Memorials (unadjusted for Penalties) are entered into consideration for the Best Overall Applicant Memorial. The Respondent Memorials that were considered for the Alona E. Evans Award or a M. Cherif Bassiouni Award that received the highest ten total Memorial scores (unadjusted for Penalties) for Respondent Memorials are entered into consideration for the Best Overall Respondent Memorial.

12.6. The Spirit of the Jessup Award

The Spirit of the Jessup Award was created in 1996 to recognize the Team that best exemplifies the Jessup spirit of camaraderie, academic excellence, competitiveness, and appreciation of fellow competitors. The manner in which the winner is selected will be announced in advance of the International Rounds.

12.7. Other Awards

In each Round, the Administrator shall arrange for appropriate recognition of the following: Teams that receive the top Total Memorial Scores, highest ranked oralists, and Teams that advance to the Elimination Rounds. The Board of Directors may by resolution provide for other awards, such as Best Oralist at the Final Rounds, Best National Administrator, Outstanding Volunteer Service, and other categories as the Board may from time to time see fit.

RULE 13: ACCOMMODATION REQUESTS

The Administrator shall aim to provide reasonable accommodation and support to participants with disabilities, allowing them to fully engage in the Competition while upholding the fairness and integrity of the Competition.

13.1. Accommodation Requests

(a) Participants with special needs shall have the right to request reasonable accommodation to ensure their full and equal participation in the Competition.

(b) Accommodation requests must be made in writing to jessup@ilsa.org or directly to the Executive Director before the start of the Rounds.

(c) The accommodation request should include a detailed description of the requested accommodation(s).

(d) The Executive Director shall evaluate each request on a case-by-case basis, considering the nature of the disability, the requested accommodation, and the feasibility of implementation; and communicate a final decision to the participant who requested the accommodation and the relevant Administrator.

ANNEX I: LIST OF ACRONYMS

(D)ARSIWA	(Draft) Articles on the Responsibility of States for Internationally Wrongful Acts
ACHPR	African Commission on Human and Peoples' Rights
ACtHPR	African Court on Human and Peoples' Rights
AU	African Union
CJEU	Court of Justice of the European Union
ECHR	European Convention on Human Rights
ECtHR	European Court of Human Rights
ECJ	European Court of Justice
ECOSOC	United Nations Economic and Social Council
ECOWAS	Economic Community of West African States
EU	European Union
GATT	General Agreement on Tariffs and Trade
HRC	UN Human Rights Council
HRComm	UN Human Rights Committee
IACHR	Inter-American Commission of Human Rights
IACtHR	Inter-American Court of Human Rights
ICC	International Criminal Court
ICCPR	International Covenant on Civil and Political Rights
ICESCR	International Covenant on Economic, Social and Cultural Rights
ICTY	International Criminal Tribunal for the former Yugoslavia
ICJ	International Court of Justice
ICSID	International Centre for Settlement of Investment Disputes
ICTR	International Criminal Tribunal for Rwanda
ILC	International Law Commission
ILO	International Labour Organization
IMO	International Maritime Organization
ITLOS	International Tribunal for the Law of the Sea
NATO	North Atlantic Treaty Organization
NGO	Non-Governmental Organization
OAS	Organization of American States
OAU	Organisation of African Unity
PCA	Permanent Court of Arbitration
PCIJ	Permanent Court of International Justice
UDHR	Universal Declaration of Human Rights
UN	United Nations
UNESCO	United Nations Educational, Scientific and Cultural Organization
UNGA	United Nations General Assembly
UNHCR	United Nations High Commissioner for Refugees
UNSC	United Nations Security Council
VCCR	Vienna Convention on Consular Relations
VCDR	Vienna Convention on Diplomatic Relations
VCLT	Vienna Convention on the Law of Treaties
WTO	World Trade Organization